

PT. MAXPOWER COGINDO BATAM

NEW CERTIFICATION AUDIT PROPOSAL

Quality Management System ISO 9001:2015 New Certification Audit

REF.NO:

QRN2506000090

PREPARED FOR:

Mr. Name R. Wisnu Subroto / Mr. Didy Risky

PT. Maxpower Cogindo Batam

PLTMG Baloi, Jl. Sudirman, Kel. Sukajadi, Kec. Batam Kota, Batam, Kepulauan Riau, 29432 INDONESIA

DATE OF ISSUE:

30 June 2025

PREPARED BY:

Cindy Oktorina
Account Manager

INTERTEK SAI GLOBAL

Jakarta, 30 June 2025

Ref. No.: **QRN2506000090**

Mr. Name R. Wisnu Subroto / Mr. Didy Risky

PT. Maxpower Cogindo Batam
PLTMG Baloi, Jl. Sudirman, Kel. Sukajadi, Kec. Batam Kota, Batam, Kepulauan Riau, 29432 INDONESIA

Dear Sir/s,

Thank you for allowing Intertek SAI Global the opportunity to provide **PT. Maxpower Cogindo Batam** with a proposal for **New Certification** services against **Quality Management System ISO 9001:2015** standards

Please find a detailed proposal outlining our understanding of your business requirements and the approach that Intertek SAI Global would adopt to guide your organisation through the certification process.

In preparing this proposal, we have used our experience and knowledge gained from many years of operation in all major industry sectors. As one of the leading certification body, Intertek SAI Global has issued thousands of certificates. Through this formal compliance and ongoing surveillance of management systems, Intertek SAI Global has helped organisations achieve continual improvement with their business management systems to maximise business success.

Once you are certified with Intertek SAI Global, you are licensed to use the mark of excellence – the ‘Five-Ticks’ StandardsMark™ on marketing and promotional materials, including letterhead, business cards and signage, to help you display your commitment to your Management Systems.

We will contact you in the near future concerning this proposal. In the meantime please do not hesitate to call Cindy Oktorina on cindy.oktoria@saiglobal.com should you have any questions, or if we can be of further assistance.

On behalf of Intertek SAI Global, I look forward to working with you to achieve your certification goals.

Yours sincerely,



Elvy Chandra Dewi
Director
Intertek **SAI Global**
www.saiaassurance.id

Did you know upon certification with SAI Global to many programs, that you can display the “Five Ticks” StandardsMark™

Please **initial** to confirm all company information relative to the scope of assessment is accurate and complete. Information has been used to develop proposal and will be used to set-up licence structures and audit schedules.

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Introducing Intertek SAI Global

Our Business

Intertek SAI Global is a knowledge-based company which has evolved into one of the world's leading suppliers providing:

- **Access to millions of Standards** and Codes of Practice from around the world and Australian Legislation
- **Business training and improvement** services
- **Audit, assessment, and certification services** for programs against most management Systems and Food Safety Standards.

We have built our business by developing expertise and extending our range of products and services, and risk management across large and small organisations.

An Intelligent Risk Approach

At Intertek SAI Global, we believe that managing risk proactively is a strategic imperative that creates opportunities and a competitive advantage for customers. We call this Intelligent Risk.

The Intelligent Risk approach focuses on the opportunities presented by uncertainty and market disruption – constants in today's business environment. We help customers anticipate, interpret, and optimise risk, creating new opportunities, and building brand trust.

Our balanced approach to decision-making protects brand reputations and helps companies achieve strategic objectives.

Our Experienced Auditors

Local, qualified, professional staff auditors – that's the difference. You will be able to draw on the expertise, experience, and qualifications of our team of employee auditors. They are business management professionals located in all states and regional centres across Australia, delivering focused assessments for your business.

Intertek SAI Global is committed to ongoing training of our team to optimise contribution to your business success. Through participation in both Australian and International standards committees, we contribute to the development of both national and international quality management and product standards.

Our International Accreditations

Intertek SAI Global is accredited by international accreditation bodies to deliver product and management system 3rd party certification. These accreditation bodies include JASANZ and KAN. Our scope of accreditation with KAN (**based on Description of economic sector activity**):

- For ISO 9001 are accredited for all scope, **excluding:** nuclear and aerospace.
- For ISO 14001 are accredited for Agriculture, forestry and fishing, Mining and quarrying, Food products, beverages and tobacco, Limited to "Paper products", Printing companies, Chemicals, chemical products and fibres, Rubber and plastic products, Non-metallic mineral products, Concrete, cement, lime, plaster, etc., Limited to "fabricated metal products", Limited to "Base metals production", Machinery and equipment, Electrical and optical equipment, Other transport equipment, Construction, Engineering services, Other services, and Education.
- For ISO 45001 are accredited for: Mining and quarrying, Food products, beverages and tobacco, Chemicals, chemical products and fibres, Rubber and plastic products, Limited to "fabricated metal products", Limited to "Base metals production", Machinery and equipment, Electrical and optical equipment, Construction, and Engineering services.



Our Brand

Today the StandardsMark™ is the most widely recognised symbol of excellence in our region. In a major market research project, 82% of respondents recognised the Five Tick brand, adding further value and recognition for our clients.

Let your stakeholders know about your commitment to quality and excellence with the "Five Ticks".

Where have you seen the "Five Ticks" recently?



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PT. Maxpower Cogindo Batam, Your Journey to New Certification Begins Here

Thank you for allowing Intertek SAI Global the opportunity to provide **PT. Maxpower Cogindo Batam** with a proposal for New Certification services against **Quality Management System ISO 9001:2015** standards.

This document contains a detailed proposal outlining our understanding of your business requirements and the approach that Intertek SAI Global would adopt to guide your organisation through the New Certification process.

Your Requirements

ORGANISATION NAME

PT. Maxpower Cogindo Batam	NPWP 95.726.745.3-225.000
PRIMARY CONTACT	PHONE/EMAIL
Mr. Name R. Wisnu Subroto / Mr. Didy Risky	02139700900 didi.risky@maxpowergroup.com ; wisnu.subroto@maxpowergroup.com
PRIMARY CONTACT ADDRESS	ASSESSMENT TYPE
PLTMG Baloj, Jl. Sudirman, Kel. Sukajadi, Kec. Batam Kota, Batam, Kepulauan Riau, 29432 INDONESIA	New Certification Audit
	ANTICIPATED DELIVERY DATE
	August 2025

Certification Scope

Ref.No: QRN2506000090

It is our understanding that the Scope of your Integrated Management System Assessment will encompass:
ISO 9001:2015 Draft Scope :

Operation and maintenance of power plant

Site address & classification:	Site Scope:	Standard(s):	No. Of Employees:
Head Office PLTMG Baloj, Jl. Sudirman, Kel. Sukajadi, Kec. Batam Kota, Batam, Kepulauan Riau, 29432 INDONESIA	Operation and maintenance of power plant	ISO 9001:2015	35 FTE 23

Your Goals

Based on our discussions, I understand you wish to engage Intertek SAI Global's audit and **New Certification** services to assist **PT. Maxpower Cogindo Batam**'s goals to:

- Meet a tender requirement or contractual obligations
- Help improve your management systems and streamline business processes
- Facilitate continuous improvement within your business
- Create efficiencies, and cost savings in your business
- Gain peace of mind in your system by having a third-party audit and verify your business processes
- Secure access to the exclusive and market leading Five Ticks StandardsMark™

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WHY PARTNER WITH INTERTEK SAI GLOBAL

Intertek SAI Global can meet **PT. Maxpower Cogindo Batam**»s requirements, and more. Our strengths include:

Credible Expertise and Capability

- Intertek SAI Global is not only the leading certification body in Australia, but also one of the world's largest with over 35 years of industry experience across the Assurance risk portfolio.
- Our auditors balance industry experience with our proven audit processes to provide fast and accurate results.
- Rigorous on-boarding and ongoing professional development ensure only the best auditors work for Intertek SAI Global.
- World class knowledge base through active participation in technical committees.
- Intertek SAI Global is extensively accredited with relevant international bodies, including JAS-ANZ.

“Intertek SAI Global’s auditors take the fear out of being audited and make it a pleasant and learning experience. I felt free to discuss my concerns about our system and was rewarded with many ideas on more opportunities to improve.”

- **Brenda Mensch, Quality Coordinator Aqua Process Inc.**

First Class Delivery and Support

With more than 1,200 employees across 130 countries, delivering over 100,000 audits each year, your local Intertek SAI Global team is equipped to support your unique requirements.

- Dedicated and local scheduler to simplify administration process and provide a clear line of communication.
- Transparent and simplified activities to ensure an easy-to-understand audit process without any hidden fees.
- Clients can also access additional resources and knowledge including webinars, whitepapers, access to checklists, technical expertise and more.

“[The auditor’s] knowledge and adaptability, particularly with regards to her grasp of our integrated Safety Management System was outstanding.”

- **Ian Dodds, Manager for Safety Governance and Assurance, Airbus Australia Pacific**

Access to the Leading Certification Mark

Certification with Intertek SAI Global gives you access to the exclusive and market leading Five Ticks StandardsMark™, five times more recognised than any other competitor mark.

- Research conducted in 2019 found that the Five Ticks StandardsMark™ had a 41% general Australian consumers awareness.
- 77% of Australian consumers who recognised the mark associated the mark with a symbol for trust.
- The Five Ticks StandardsMark™ provides a competitive advantage, with 54% of Australian consumers preferring a product that had the Five Ticks logo.

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CERTIFICATION PATHWAY

Step 1	Getting Started			
	PURCHASE RELEVANT MANAGEMENT SYSTEM STANDARDS Standards are available to purchase from infostore.saiglobal.com	UNDERTAKE TRAINING (OPTIONAL) Build your knowledge and skills to implement an efficient management system: learning.saiaassurance.com.au	IMPLEMENT THE STANDARD Apply the standard within your business, with management and resource commitment.	
Step 2	Applying			
	CERTIFICATION PROPOSAL Receive a quotation on time frames and costs to your requirements.	ACCEPT PROPOSAL AND BOOK AUDIT DATES Once agreed to, an Intertek SAI Global scheduler will contact you to book your audit.	PRE-ASSESSMENT (GAP ANALYSIS) Organisations certifying to a new standard can undertake a 'dry run' audit to assess readiness.	SELF-EVALUATION (OPTIONAL) Complete a self-evaluation questionnaire prior to the Stage 1 Audit.
Step 3	Certification			
	STAGE 1 AUDIT Documentation & readiness review for each site. The auditor reviews your reference documents and preparedness to ensure you comply with the requirements of the standard.		STAGE 2 AUDIT Certification audit and registration. A detailed full system audit to verify the Standard requirements have been met. Upon successful certification, display the 'Five Ticks' logo.	
Step 4	Maintenance			
	SURVEILLANCE AUDITS A Surveillance Audit is conducted (at least) annually to ensure you continue to meet the standards requirements.	RE-CERTIFICATION AUDIT A detailed full system Re-certification Audit is conducted every 3 years to ensure continual compliance.	ONGOING DEVELOPMENT Equip your team with the skills and tools to understand and continually improve processes and systems.	
Step 5	Marketisation			
	MARKET FOR BRAND AND PROMOTIONAL BENEFITS You might consider press releases; website banner/logo usage; or social media channel communication.	SHAREHOLDER AND STAKEHOLDER AWARENESS Visibility in board reports, press releases, articles and general communication	SALES OPTIMISATION Ensure your team are equipped to communicate your success.	

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Audit Durations

Initial Duration Reductions to Achieve Certification have been applied based on assessment of (but not limited to): risk level; number of employees performing similar tasks; and integration of the management, as described in your application.

Declared level of Management System integration*(based on application QEF15)	0 %	Please Note: may be subject to adjustment on the basis of confirming the level of integration at stage one and subsequent audits.
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Stage	Standard(s)	Site Address & Classification:	Risk	Initial Duration(s)	Adjusted Duration(s)
Stage 1 Audit	ISO 9001:2015	Head Office PLTMG Baloi, Jl. Sudirman, Kel. Sukajadi, Kec. Batam Kota, Batam, Kepulauan Riau, 29432 INDONESIA	Medium	1 Manday/s	-
Stage 2 Audit	ISO 9001:2015		Medium	2,5 Manday/s	-
Maintenance Audit, Annual Surveillance	ISO 9001:2015		Medium	1 Manday/s	-

Justification for Adjustment(s)

Please Select ((refer to Justification for Duration adjustment on Contract Review Application/kalkulator/ Doc ID8347)

1. -
2. -

Accreditation(s):	Accreditation Bodies:
ISO 9001:2015	KAN (Komite Akreditasi Nasional)

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ACHIEVE NEW CERTIFICATION

By selecting Intertek SAI Global as **PT. Maxpower Cogindo Batam**'s partner in the delivery of New Certification audit services, you are choosing a highly credentialed organisation who adds significant value, drive cost effectiveness, deliver transparency of process, improve risk management and enhance brand reputation.

ACHIEVE NEW CERTIFICATION (2025)

Stage	Standard(s)	Duration/ Quantity	Investment Inc VAT
Application Fee	ISO 9001:2015	1	Rp 2.500.000
Stage 1 Audit			
- Head Office - Includes planning and report writing	ISO 9001:2015	1 Manday/s	Rp 6.000.000
Stage 2 Audit			
- Head Office - Includes planning and report writing	ISO 9001:2015	2,5 Manday/s	Rp 15.000.000
Travel Time		1	Rp 6.000.000
Transportation & Accomodation		-	-
Registration			
- Head Office - Certification maintenance and audit management, - Licencing for use of SAI Global Pty Limited's 'Five Ticks' StandardsMark™, - Listing on both the Intertek SAI Global On-line Register, and on the KAN register - PDF of your certificate.	ISO 9001:2015	1	Rp 3.000.000
FIRST YEAR INVESTMENT			Rp 32.500.000

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YOUR INVESTMENT INCLUDES:

- New Certification Audit.
- A Copy Certificate upon final certification.
- Intertek SAI Global Audit Report upon completion of each audit stage.
- Use of the Intertek SAI Global "Five Ticks" StandardsMark™.
- Listing on Intertek SAI Global and JAS-ANZ Certification register so you and your customers can verify your certification is valid.

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MAINTAIN CERTIFICATION

Surveillance Audits are required between major certification stages to ensure you are maintaining expected performance (these audits are annual at a minimum).

YEARS 2 & 3 – Maintain Certification COST ESTIMATE (2026-2027)

Stage	Standard(s)	Duration/ Quantity	Investment INC VAT
Annual Surveillance Audit			
- Head Office - Includes planning and report writing	ISO 9001:2015	1 Manday/s	Rp 6.000.000
Travel Time		1	Rp 6.000.000
Travel & Accommodation		-	-
Registration			
- Head Office - Certification maintenance and audit management, - Licencing for use of SAI Global Pty Limited's 'Five Ticks' StandardsMark™, - Listing on both the Intertek SAI Global On-line Register, and on the KAN register - PDF of your certificate.			Rp 3.000.000
ESTIMATED INVESTMENT PER ANNUM			Rp 15.000.000

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RECERTIFICATION

Upon the third-year anniversary of your certification a comprehensive audit process is required to re-certify (cost estimates for these Recertification audits are available upon request following the preceding Surveillance audit).

Please Note:

- The prices are **excludes** VAT, **Covid19 test (if any)**
- The prices are **Excludes travel/accommodation expenses**
- These costs in the 'Achieve Certification' and 'Maintain Certification' sections include planning, preparation, on and/or off-site report writing and apply to any part thereof, of this proposal.
- Audit durations are approximate, pending confirmation during the New Certification visit.
- 1 day = 8 hours inclusive of lunch
- Costs are based on current fees and may be subject to change after the expiration of the 90-day acceptance period, after acceptance shall be audited in one calendar year.
- Invoices with 30-day payment terms will be issued upon completion of each audit stage.
- Intertek SAI Global provision of service/s can only commence at a mutually agreed date.
- For more detail regarding your investment please refer to the notes section at the back of this Proposal.
- For additional work & non-conformance follow up (**onsite/offsite**), please find the following confirmation of audit rates:

ITEM	Inc VAT
Day Rate	Rp 6.000.000
½ Day Rate	Rp 3.000.000

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LOGISTICS & TRAVEL EXPENSES

Travel, accommodation costs and disbursements are not included in the totals described in the “Achieve Certification” and “Maintain Certification” sections of this proposal.

The actual travel costs involved in delivering onsite audits may fluctuate subject to third party charges (e.g. airfares and accommodation), specific standard requirements and/or resource utilisation at Intertek SAI Global’s discretion. Intertek SAI Global will endeavour to resource local auditors wherever practical and possible or unless instructed otherwise directly by an authorised client representative.

To help assess potential travel charges, the classification of **PT. Maxpower Cogindo Batam**’s site/s (as either metro or non-metro) has been provided in the “Your Requirements” section at the start of this proposal. Relevant travel charges for metro and non-metro sites are detailed in full in the “Proposal Notes” section of this proposal.

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PROPOSAL ACCEPTANCE

If this proposal meets with your approval and you would like to confirm your intention to proceed, please complete the acceptance below within 30-days of date of issue.

We take this opportunity to thank you for choosing Intertek SAI Global and look forward to being a party to your business success for many years ahead and assisting you with our Assurance Solutions to deliver quality, sustainability, safety compliance and brand trust.

Applicant Declaration

I accept the terms, conditions and proposal notes as set out in the PT Intertek SAI Global Indonesia:

- Proposal for Quality Management System ISO 9001:2015 New Certification Services.
- Reference **QRN2506000090**
- Intertek [SAI Global Terms and Conditions of Certification Services](#)
- Provision of NPWP or relevant documents of our company required for invoicing and payment

Further we accept that as a condition of Quality Management System ISO 9001:2015 certification, the auditor may be accompanied by other personnel for following purposes:

- training, assessment or calibration
- routine Intertek SAI Global observe and witness audit programmes
- witness audits by Accreditation Bodies and/or Scheme owner

I hereby notify on behalf of PT. Maxpower Cogindo Batam and confirm that I have read, understood and agree to this proposal and the Intertek SAI Global Terms and Conditions of Certification Services. The information on PT. Maxpower Cogindo Batam detailed in this proposal is accurate for purposes of the requested « Quality Management System ISO 9001:2015 New Certification / Assessment.

As required by JAS-ANZ, Intertek SAI Global are to provide provision to complete Special Audits to ISO45001 at short notice independent of the competent regulatory authority. Special Audit's may be considered necessary in the event that Intertek SAI Global becomes aware that there has been an incident related to occupational health and safety within the certified organisation which may be the result of a serious accident, or breach of regulation. The audit shall investigate whether the management system has been compromised or did it function effectively and must be completed within two weeks of Intertek SAI Global becoming aware of the incident. To provide a reasonable output from this special audit, durations will be calculated and agreed to on a case-by-case basis.

NAME:	
Position/Title:	
COMPANY	PT Maxpower Cogindo Batam
ABN:	
Email Address:	
Signature:	
Date:	

INTERTEK SAI GLOBAL REPRESENTATIVE

NAME:	ELVY CHANDRA DEWI
Position/Title:	DIRECTOR
COMPANY	PT INTERTEK SAI GLOBAL INDONESIA
ABN:	
Email Address:	
Signature:	 
Date:	30 June 2025

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PAYMENT DETAILS

*New Certification audit (Excluding VAT)	Rp 32.500.000	☐ Yes! I would like to be Certified with Intertek SAI Global
*Annual Surveillance (Excluding VAT)	Rp 15.000.000	☐ Yes! I would like to be Certified with Intertek SAI Global
*Additional Work / Follow Up Audit NC (Excluding VAT)	Rp 6.000.000	☐ Yes! I would like to be Certified with Intertek SAI Global

Please Inform Required document for invoicing:

☐ BAST ☐ PO ☐ SPK ☐ Others _____

Payment are transferred to PT INTERTEK SAI GLOBAL INDONESIA:

HSBC, World Trade Center I 1st Floor, Jl. Jendral Sudirman Kav. 29-31, Jakarta 12920,

Account Number: 050-227214-068 (IDR), 050-227214-115 (USD), 050-227214-116 (AUD),

Please include the invoice number and name of company when making transfer.

Please fax or email the completed and signed proposal to PT Intertek SAI Global Indonesia

Attention: Cindy Oktoria Karnewati

Fax: +6221 7206207

Email: Cindy.oktoria@saiglobal.com

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PROPOSAL NOTES

VALIDITY OF THIS QUOTATION

These costs are based on our current charge-out rates; however, we reserve the right to review these charges during the three-year certification period, prior to the commencement of each financial year on 1 January. For full Terms & Conditions please refer to the [SAI Global Terms & Conditions of Certification Services](#).

GST, INVOICES AND DISBURSEMENTS

Please note that all fees quoted are GST inclusive. Invoices will include GST on all fees and disbursements such as travel and subsistence. Invoices with 30 days payment terms will be issued after each audit visit or item of work performed. We undertake to minimise these wherever practicable, e.g. by trying to combine surveillance visits with other clients in your area.

EXTRA WORK & NON-CONFORMANCE FOLLOW UPS

Additional work beyond the standard audit/service duration will be charged at the rates quoted within. Such work would include, but is not limited to, **major and/or minor non-conformance** follow-up visits, special audits, office-time to clear Non-Conformance Reports, audit preparation time, and extensions to scope. All efforts are made to keep these extra charges to a minimum.

CERTIFICATION MAINTENANCE

Unless specifically agreed otherwise, certification maintenance visits are due at 12-monthly intervals from the last day of certification/follow up audit.

SERVICE DESCRIPTION AND DURATIONS

Service is as per Scope and Audit durations are approximate, both subject to confirmation, amendment or withdrawal during Audit visit. Intertek SAI Global reserves the right to subcontract auditors with experience that is appropriate to the scope of activities being assessed to deliver the audit services.

INTERTEK SAI GLOBAL BUSINESS STRUCTURE AND LICENCE TERMS

Intertek SAI Global undertakes the auditing and its related accredited body, Intertek SAI Global Certification Services Pty Limited - JASANZ and PT Intertek SAI Global Indonesia - KAN, undertakes an independent review of the audit report based on which it makes its decision in relation to the grant of certification and issue of a licence to display the StandardsMark on Intertek SAI Global Licence terms and conditions.

TRAVEL COSTS

For cost efficiency, we will utilize our auditor with the designated program and codes.

All travel expenses required to reach the audit site, such as airfares, train ticket, travel ticket, taxi, toll, parking, meals, accommodation, car rental, are charged at cost. Clients may request to arrange airfares, accommodation, and car rental directly for the Intertek SAI Global auditor upon notifying Intertek SAI Global in writing prior to arrangement.

Intertek SAI Global will endeavour to resource local auditors wherever practical and possible or unless instructed otherwise directly by an authorised client representative.

CANCELLATION FEE

Cancellation of audits within 10 business days (i.e. two weeks) by the client will incur a 100% charge of the audit fee, plus 100% of any cancellation fees (incurred by Intertek SAI Global) for travel, accommodation bookings etc. (at cost). Cancellation of audits within 20 business days (i.e. four weeks), will incur a 50% charge of the audit fee, plus 100% of any cancellation fees (incurred by Intertek SAI Global) for travel, accommodation bookings etc. (at cost).

CERTIFICATES

Once certification has been approved, we will issue you with a Certificate of Registration in PDF format, which has a defined expiry date. This Certificate will also be made available on our Certification Register. Hardcopies can be purchased for Rp 300.000 (ext VAT) each if required.

Details of your certification are available for clients and other stakeholders to view online via the Intertek SAI Global Certification Register: <http://register.saiglobal.com>

ENDORSEMENTS

If you have any changes, such as changes to address, changes to company name etc., please contact us at 021-7206186 or email us at:

CLIENT SERVICES

cs.indonesia@saiglobal.com

For Other Information:

SCHEDULING

scheduling.indonesia@saiglobal.com

TRAINING SERVICES

training.indonesia@saiglobal.com

SALES AND MARKETING

marketing.indonesia@saiglobal.com

INVOICING ENQUIRIES

finance.indonesia@saiglobal.com

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TERMS AND CONDITIONS FOR CERTIFICATION, ASSESSMENT SERVICES AND TRADEMARK LICENCE

Ketentuan dan Syarat-syarat untuk Jasa Sertifikasi, Penilaian dan Lisensi Merek Dagang

TO BE READ IN CONJUNCTION WITH YOUR APPLICATION/PROPOSAL.

UNTUK DIBACA SEHUBUNGAN DENGAN APLIKASI/PROPOSAL ANDA.



Certification Services Terms and Conditions

Ketentuan dan Syarat-syarat Jasa Sertifikasi

1. APPLICABILITY	1. BERLAKUNYA
1.1 These terms and conditions govern the supply of Certification Services by Intertek SAI Global to the Client.	1.1 Ketentuan dan syarat-syarat ini mengatur penyediaan Jasa Sertifikasi oleh Intertek SAI Global kepada Klien.
1.2 These terms and conditions prevail over any other terms that may be communicated by the Client in writing or orally, whether in an order, letter, other document, in negotiations or otherwise.	1.2 Ketentuan dan syarat-syarat ini berlaku di atas ketentuan lain yang mungkin dikomunikasikan oleh Klien secara tertulis atau lisan, baik dalam bentuk perintah, surat atau dokumen lain, dalam tahap negosiasi atau lainnya.
1.3 No person acting or purporting to act on behalf of Intertek SAI Global shall have authority to waive or change these terms orally. Waivers or changes shall have effect only if made in writing and signed by a duly authorised officer of Intertek SAI Global.	1.3 Tidak seorang pun yang bertindak atau mengklaim bertindak atas nama Intertek SAI Global akan mempunyai wewenang untuk mengecualikan atau mengubah ketentuan ini secara lisan. Pengecualian atau perubahan hanya akan berlaku apabila dibuat secara tertulis dan ditandatangani oleh pejabat Intertek SAI Global yang berwenang.
1.4 Intertek SAI Global may vary these terms and conditions at any time by notifying the Client, including any variation necessary to satisfy any direction given to Intertek SAI Global by JAS-ANZ or any other accreditation authority.	1.4 Intertek SAI Global dapat mengubah ketentuan dan syarat-syarat ini setiap saat dengan memberitahukannya kepada Klien, termasuk perubahan apa pun yang diperlukan untuk memenuhi setiap arahan yang diberikan kepada Intertek SAI Global oleh JAS-ANZ atau otoritas akreditasi lainnya.
2. DEFINITIONS	2. DEFINISI
In these terms and conditions:	Dalam ketentuan dan syarat-syarat ini:
'Cancellation Fee' means a cancellation fee in respect of cancellation or postponement of audit as specified in the schedule of fees or otherwise by Intertek SAI Global;	'Biaya Pembatalan' berarti suatu biaya pembatalan berkenaan dengan pembatalan atau penangguhan audit sebagaimana yang ditetapkan dalam jadwal biaya atau bila tidak oleh Intertek SAI Global;
'Certificate' means the document issued by Intertek SAI Global to record Certification;	'Sertifikat' berarti dokumen yang diterbitkan oleh Intertek SAI Global sebagai bukti Sertifikasi.
'Certification' means confirmation that a product, process or service has been assessed in accordance with Certification Procedures as meeting specified requirements;	'Sertifikasi' berarti penegasan bahwa, suatu produk, proses, atau jasa telah dinilai sesuai dengan Prosedur Sertifikasi yang memenuhi persyaratan tertentu.
'Certification Mark' means a symbol, word or other sign that signifies that a product, process or service has been certified by a competent person as meeting specified requirements;	'Tanda Sertifikasi' berarti suatu lambang, frasa/kata atau tanda lain yang menandai bahwa suatu produk, proses atau jasa telah disertifikasi oleh orang yang kompeten sesuai persyaratan yang ditentukan.
'Certification Procedures' means procedures developed by Intertek SAI Global and used in	'Prosedur Sertifikasi' berarti prosedur yang dikembangkan oleh Intertek SAI Global dan





assessing a product, process or service for the purpose of grant or maintenance of Certification. These terms and conditions override any inconsistent Certification Procedures;	digunakan dalam menilai suatu produk, proses atau jasa untuk tujuan pemberian atau pemeliharaan Sertifikasi. Ketentuan dan syarat-syarat ini akan menggantikan Prosedur Sertifikasi apa pun yang tidak konsisten;
‘Certification Services’ means assessment of a product, process or service in accordance with Certification Procedures. Certification Services includes one off assessment and verification services, gap analysis and second party audits, whether or not a certificate is issued;	‘Jasa Sertifikasi’ berarti penilaian suatu produk, proses atau jasa sesuai dengan Prosedur Sertifikasi. Jasa Sertifikasi mencakup jasa penilaian dan verifikasi, audit analisis kesenjangan dan pihak kedua, baik apakah suatu sertifikat diterbitkan atau pun tidak;
‘Client’ means the company, organisation or individual, or more than one company, organisation or individual acting in partnership, seeking Certification;	‘Klien’ berarti perusahaan, organisasi atau perorangan, atau lebih dari satu perusahaan, organisasi atau perorangan yang bertindak dalam kemitraan, mencari Sertifikasi;
‘Contract’ means the contract between Intertek SAI Global and the Client resulting from the Client’s application for Certification and Licence and incorporates the terms and conditions governing the supply of Certification Services and, where Intertek SAI Global grants the Client a licence to use a Licensed Certification Mark, the terms governing the Licensed Certification Mark;	‘Kontrak’ berarti kontrak antara Intertek SAI Global dan Klien sebagai akibat dari permohonan Klien untuk Sertifikasi dan Lisensi dan memasukkan ketentuan dan syarat-syarat yang mengatur penyediaan Jasa Sertifikasi dan, di mana Intertek SAI Global memberikan kepada Klien suatu lisensi untuk menggunakan suatu Tanda Sertifikasi Berlisensi, syarat-syarat yang mengatur Tanda Sertifikasi Berlisensi tersebut;
‘JAS-ANZ’ means the organisation known as Joint Accreditation System of Australia and New Zealand and its successors and assigns;	‘JAS-ANZ’ berarti organisasi yang dikenal sebagai Sistem Akreditasi Bersama Australia dan New Zealand dan para penerusnya dan yang ditugaskan;
‘Default Rate’ means 1.5% of overdue amounts per month calculated on a daily basis;	‘Biaya Keterlambatan’ berarti 1.5% dari jumlah yang tertunggak per bulan dihitung atas dasar harian;
‘Schedule of Fees’ means the fee schedule for the Certification Services as set by Intertek SAI Global, at its sole discretion, from time to time (and where applicable for product certification clients) or as otherwise agreed by Intertek SAI Global and the Client;	‘Jadwal Biaya’ berarti biaya yang dijadwalkan untuk Jasa Sertifikasi sebagaimana ditetapkan oleh Intertek SAI Global, atas kebijakannya tersendiri, dari waktu ke waktu (dan di mana berlaku untuk klien sertifikasi produk) atau sebagaimana yang disepakati oleh Intertek SAI Global dan Klien;
‘Site’ means the location of manufacture of product or of performance of a process or service;	‘Tempat/Lokasi’ berarti lokasi pembuatan produk atau pelaksanaan suatu proses atau jasa;
‘Intertek SAI Global’ means PT Intertek SAI Global Indonesia and/or SAI Global Certification Services Pty Limited (ACN 59 108 716 669).	‘Intertek SAI Global’ berarti PT Intertek SAI Global Indonesia dan/atau SAI Global Certification Services Pty Limited (ACN 59 108 716 669).
3. CERTIFICATION SERVICES	3. JASA SERTIFIKASI
3.1 Under the Contract, Intertek SAI Global agrees to provide and the Client agrees to accept the Certification Services requested by the Client.	3.1 Pada Kontrak, Intertek SAI Global setuju untuk menyediakan dan Klien sepakat untuk menerima Jasa Sertifikasi yang diminta oleh Klien.





3.2 Intertek SAI Global may appoint an agent or contractor to provide Certification Services, including under taking all or part of the Certification Procedures and the Client hereby consents to such appointment.	3.2 Intertek SAI Global dapat menunjuk suatu agen atau kontraktor untuk memberikan Jasa Sertifikasi, termasuk melaksanakan semua atau sebagian dari Prosedur Sertifikasi dan Klien dengan ini menyetujui penunjukan tersebut.
4. FEES 4.1 The Client must pay to PT Intertek SAI Global Indonesia all fees due in respect of Certification Services provided by Intertek SAI Global to the Client and any Cancellation Fee. 4.2 The fees payable under clause 4.1 are those set out in a current Schedule of Fees issued by Intertek SAI Global from time to time or as otherwise agreed by Intertek SAI Global and the Client. 4.3 Intertek SAI Global shall, from time to time, render invoices for the performance of the Certification Services and the Client must pay the invoiced amount to Intertek SAI Global in the currency specified within 30 days of the date of Intertek SAI Global's invoice or as otherwise agreed. Intertek SAI Global shall be under no liability to refund fees paid by the Client in the event of suspension or termination of Certification by Intertek SAI Global or the Client. If the Client does not pay an amount payable under these terms and conditions on time, the Client must pay interest on that amount on demand by Intertek SAI Global from when it becomes due for payment until it is paid. Interest is calculated on daily balances at the Default Rate; 4.4 Intertek SAI Global reserves the right to amend its Schedule of Fees (where applicable for product certification clients) at any time or to otherwise review agreed pricing principles and/or to require payment of fees in advance.	4. BIAYA 4.1 Klien harus membayar kepada PT Intertek SAI Global Indonesia semua biaya yang terhutang berkenaan dengan Jasa Sertifikasi yang telah diberikan oleh Intertek SAI Global kepada Klien dan setiap Biaya Pembatalannya. 4.2 Biaya yang terhutang sesuai klausul 4.1 adalah yang ditetapkan dalam Jadwal Biaya terkini yang diterbitkan oleh Intertek SAI Global dari waktu ke waktu atau sebagaimana yang disetujui oleh Intertek SAI Global dan Klien. 4.3 Intertek SAI Global akan, dari waktu ke waktu, menyampaikan tagihan untuk pelaksanaan Jasa Sertifikasi tersebut dan Klien harus membayar jumlah yang ditagihkan kepada Intertek SAI Global dalam mata uang yang telah ditentukan dalam waktu 30 hari sejak tanggal penagihan Intertek SAI Global atau sesuai dengan kesepakatan. Intertek SAI Global tidak berkewajiban untuk mengembalikan biaya yang dibayarkan oleh Klien dalam hal terjadinya penangguhan atau pengakhiran Sertifikasi oleh Intertek SAI Global atau Klien. Apabila Klien tidak membayar sejumlah yang terhutang sesuai ketentuan dan syarat-syarat ini secara tepat waktu, Klien harus membayar bunga atas jumlah tersebut atas permintaan Intertek SAI Global saat mulainya terhutang untuk dibayar sampai dengan dibayarkannya. Bunga dihitung dari saldo harian berdasarkan biaya keterlambatan; 4.4 Intertek SAI Global berhak untuk mengubah Jadwal Biaya (jika berlaku untuk klien sertifikasi produk) pada saat kapan pun atau untuk sebaliknya meninjau ulang harga yang telah disetujui dan/atau untuk mensyaratkan pembayaran biaya di muka.
5. ASSESSMENT <i>Access and Co-operation</i> 5.1 The Client agrees to comply with the applicable Certification Procedures and to provide Intertek SAI Global's employees, agents and contractors with all co-operation and assistance required by the applicable Certification Procedures necessary to enable Intertek SAI Global to provide the	5. PENILAIAN <i>Akses dan Kerjasama</i> 5.1 Klien setuju untuk tunduk dengan Prosedur Sertifikasi yang berlaku dan akan menyediakan kepada para karyawan, agen dan kontraktor Intertek SAI Global dengan semua kerjasama dan bantuan yang diperlukan berdasarkan ketentuan Prosedur Sertifikasi yang berlaku yang dibutuhkan





Certification Services requested by the Client, including reasonable access to the premises, facilities, documents and records of the Client and the Client's contractors and agents.	untuk memungkinkan Intertek SAI Global menyediakan Jasa Sertifikasi yang diminta oleh Klien, termasuk akses yang wajar ke bangunan, fasilitas, dokumen dan catatan Klien dan para kontraktor dan agen Klien tersebut.
5.2 The Client must promptly comply with any reasonable requirement of Intertek SAI Global in relation to the Client's product, process or service to make appropriate the Certification request by the Client, including allowing a representative of a relevant accreditation body to witness a Certification Service being provided by Intertek SAI Global at a Site.	5.2 Klien harus segera mematuhi setiap persyaratan Intertek SAI Global yang wajar sehubungan dengan produk, proses atau jasa Klien sesuai permintaan Sertifikasi oleh Klien, termasuk memperbolehkan wakil dari badan akreditasi yang relevan untuk menyaksikan penyediaan Jasa Sertifikasi oleh Intertek SAI Global pada suatu Lokasi.
<i>Safety</i>	<i>Keselamatan</i>
5.3 The Client accepts responsibility for the safety of Intertek SAI Global's employees, agents and contractors in activities required under the applicable Certification Procedures, including the provision of all relevant safety or protective clothing and/or equipment and advising Intertek SAI Global, its employees, agents or contractors appropriately of any safety hazards or special training requirements.	5.3 Klien menerima tanggung jawab atas keselamatan kerja para karyawan, agen, dan kontraktor Intertek SAI Global dalam kegiatan yang dipersyaratkan pada Prosedur Sertifikasi yang berlaku, termasuk semua ketentuan bersangkutan keselamatan atau pakaian dan/atau perlengkapan pelindung dan memberitahukan Intertek SAI Global, karyawan, agen atau kontraktornya sebagaimana mestinya akan setiap bahaya keselamatan atau kebutuhan pelatihan khusus.
<i>Accuracy of Information Provided to Intertek SAI Global</i>	<i>Akurasi dari Informasi yang Disediakan untuk Intertek SAI Global</i>
5.4 The Client warrants that all information made available to Intertek SAI Global is, to the best of its knowledge and belief, complete and accurate.	5.4 Klien menjamin bahwa semua informasi yang disediakan bagi Intertek SAI Global, yang menurut pengetahuan dan keyakinannya, adalah lengkap dan akurat.
6. CERTIFICATION	6. SERTIFIKASI
6.1 If:	6.1 Jika:
(a) the Client is not in breach of these terms and conditions; and	(a) Klien tidak melanggar ketentuan dan syarat-syarat ini; dan
(b) after assessment of the Client's products, process or service in accordance with the applicable Certification Procedures, Intertek SAI Global is satisfied that Certification is appropriate;	(b) setelah penilaian terhadap produk, proses atau jasa Klien telah sesuai dengan Prosedur Sertifikasi yang berlaku, Intertek SAI Global meyakini bahwa Sertifikasi tersebut sesuai;
Intertek SAI Global will:	Intertek SAI Global akan:
(a) grant Certification;	(a) memberikan Sertifikasi;
(b) issue the Client with a Certificate; and	(b) menerbitkan untuk Klien suatu Sertifikat; dan
(c) if so requested by the Client, and if relevant, grant or arrange to have granted to the Client a licence to use the applicable Certification Mark.	(c) apabila diminta demikian oleh Klien, dan apabila relevan, akan memberikan atau mengatur untuk diberikannya kepada Klien





	suatu lisensi untuk menggunakan Tanda Sertifikasi yang berlaku.
6.2 If Intertek SAI Global is not satisfied that Certification is appropriate and does not grant certification, Intertek SAI Global must notify the Client.	6.2 Jika Intertek SAI Global tidak yakin bahwa Sertifikasi sudah sesuai dan tidak akan memberikan sertifikasi, Intertek SAI Global harus memberitahukan Klien.
7. AFTER CERTIFICATION	7. SETELAH SERTIFIKASI
<i>Duration of Certification</i>	<i>Lamanya waktu Sertifikasi</i>
7.1 Subject to these terms and conditions, Certification continues until any expiry date referenced in the Certificate.	7.1 Dengan tunduk kepada ketentuan dan syarat-syarat ini, Sertifikasi tetap terus berlanjut sampai tanggal berakhirnya yang disebutkan dalam Sertifikat tersebut.
<i>Maintenance of Certification</i>	<i>Pemeliharaan Sertifikasi</i>
7.2 The Client must maintain the product, process or service as certified and comply with all reasonable requirements including the payment of fees that Intertek SAI Global considers necessary to ensure that Certification continues to be appropriate, including any requirements listed or referred to in the Certificate.	7.2 Klien harus menjaga produk, proses atau jasa sebagaimana disertifikasi dan mematuhi semua persyaratan yang wajar, termasuk pembayaran biaya yang Intertek SAI Global anggap perlu untuk memastikan bahwa Sertifikasi dapat terus berlanjut sebagaimana mestinya, termasuk persyaratan apa pun yang tercantum atau disebutkan dalam Sertifikat tersebut.
7.3. The Client must inform Intertek SAI Global, without delay, of the occurrence of a serious incident or breach of regulation necessitating the involvement of the competent regulatory authority	7.3. Klien harus memberitahu Intertek SAI Global, tanpa penundaan, ketika terjadi insiden serius atau pelanggaran peraturan yang mengharuskan keterlibatan lembaga otoritas yang berkompeten.
<i>Changes</i>	<i>Perubahan</i>
7.4 The Client must promptly inform Intertek SAI Global of any material change in relation to the certified management system, product, process or service that is likely to affect the Certification. These changes may include, but are not limited to, changes to: legal, commercial, organisational status or ownership; organisation and management (e.g. key managerial, decision-making or technical staff, modification to the product or production method); and the address of any relevant sites or other premises.	7.4 Klien harus segera memberitahu Intertek SAI Global jika ada perubahan materi terkait dengan sistem manajemen yang disertifikasi, produk, proses, atau jasa yang kemungkinan berdampak terhadap Sertifikasi. Perubahan ini dapat mencakup, tetapi tidak terbatas pada, perubahan terhadap hukum, komersial, status atau kepemilikan organisasi, organisasi dan manajemen (misalnya manajemen kunci, pembuat keputusan atau staf teknis, modifikasi terhadap produk atau metoda produksi); dan alamat lokasi (-lokasi) yang relevan atau tempat lainnya..
<i>Use of Certificate</i>	<i>Penggunaan Sertifikat</i>
7.5 The Client must not, without Intertek SAI Global's permission, alter, modify, deface or destroy the Certificate.	7.5 Klien, tidak boleh, tanpa izin Intertek SAI Global, mengubah, memodifikasi, merusak atau menghancurkan Sertifikat tersebut.
7.6 Subject to these terms and conditions, the Client may publicise the fact that Certification has been granted and use the Certificate as evidence of Certification. The Client may copy the Certificate	7.6 Dengan tunduk kepada ketentuan dan syarat-syarat ini, Klien dapat mempublikasikan fakta bahwa Sertifikasi telah diberikan dan menggunakan Sertifikat tersebut sebagai bukti Sertifikasi. Klien





provided that each copy is clearly identified as a copy.	dapat menyalin sertifikat tersebut asalkan setiap salinan dengan jelas ditandai sebagai salinan.
7.7 The original and any copies of the Certificate remain the property of Intertek SAI Global and must be returned immediately if requested by Intertek SAI Global.	7.7 Salinan asli dan salinan Sertifikat tersebut tetap menjadi milik Intertek SAI Global dan harus segera dikembalikan jika diminta oleh Intertek SAI Global.
7.8 The Certificate does not imply that any Certification is approved by any accreditation, regulatory, government or statutory authority.	7.8 Sertifikat tidak menyiratkan bahwa setiap Sertifikasi disetujui oleh suatu pihak akreditasi, lembaga perundang-undangan, pemerintah, atau berwenang.
<i>No Misrepresentation of Certification</i>	<i>Larangan atas Penyajian yang keliru dari Sertifikasi</i>
7.9 The Client must not: (a) engage in any conduct which might mislead, deceive or confuse any person in relation to; or (b) otherwise misrepresent the nature, status, scope or effect of its Certification by Intertek SAI Global.	7.9 Klien tidak diperbolehkan: (a) melakukan tindakan apa pun yang dapat menyesatkan, menipu atau membingungkan pihak mana pun terkait dengan; atau (b) apabila tidak menyajikan secara keliru sifat, status, lingkup atau dampak Sertifikasinya oleh Intertek SAI Global.
7.10 The Client must promptly comply with any directions given by Intertek SAI Global to correct any conduct or misrepresentation in breach of clause	7.10 Klien harus segera mematuhi setiap petunjuk yang diberikan oleh Intertek SAI Global untuk memperbaiki setiap perilaku atau penyajian yang keliru dalam pelanggaran klausul 7.8.
<i>Suspension, Cancellation or Expiry of Certification</i>	<i>Penangguhan, Pembatalan atau Berakhirnya Sertifikasi</i>
7.11 The Client's Certification shall be suspended with immediate effect in the following circumstances: (a) Intertek SAI Global gives notice to the Client that it considers that Certification is no longer appropriate; (b) the Client is in breach of these Terms and Conditions; (c) a substantial change in the management system of the Client occurs without the Client notifying the change to Intertek SAI Global for its review; or (d) if, in the case of any product subject to Certification, there has been a significant change in design or manufacture of such product without the Client notifying the change to Intertek SAI Global for its review.	7.11 Sertifikasi Klien akan ditangguhkan dengan segera dalam keadaan berikut ini: (a) Intertek SAI Global memberi pemberitahuan kepada Klien bahwa ia menganggap bahwa Sertifikasi tersebut sudah tidak lagi sesuai; (b) Klien melanggar Ketentuan dan Syarat-syarat ini; (c) terjadi suatu perubahan substansial dalam sistem manajemen Klien tanpa Klien memberitahukan perubahan tersebut kepada Intertek SAI Global untuk peninjauannya; atau (d) jika, dalam kasus suatu produk tunduk pada Sertifikasi, telah terjadi perubahan yang signifikan dalam desain atau pembuatan produk tersebut tanpa Klien memberitahukan perubahannya tersebut kepada Intertek SAI Global untuk peninjauannya.
7.12 If the Client's Certification is suspended:	7.12 Jika Sertifikasi Klien ditangguhkan, maka:





(a) Intertek SAI Global must within 30 days of notifying the Client of the suspension, furnish the Client with information outlining the steps that must be taken by the Client to enable the suspension to be lifted;	(a) Intertek SAI Global harus dalam waktu 30 hari setelah memberitahukan Klien tentang penangguhan, menyediakan Klien informasi yang menguraikan langkah-langkah yang harus diambil oleh Klien guna memungkinkan penangguhan tersebut dicabut;
(b) the Client must immediately take all steps necessary to enable the suspension of its Certification to be lifted; and	(b) Klien harus segera mengambil semua langkah yang diperlukan untuk memungkinkan penangguhan Sertifikasinya dicabut; dan
(c) the Client must take all steps reasonably required by Intertek SAI Global to prevent the public being misled or otherwise harmed.	(c) Klien harus mengambil semua langkah yang dipersyaratkan sewajarnya oleh Intertek SAI Global untuk mencegah publik disesatkan, atau dirugikan.
7.13 If Intertek SAI Global is satisfied with the remedial action taken by the Client, Intertek SAI Global may lift the suspension of Certification by notifying the Client.	7.13 Apabila Intertek SAI Global telah menganggap tindakan perbaikan yang dilakukan oleh Klien memuaskan, maka Intertek SAI Global dapat mencabut penangguhan Sertifikasi dengan memberitahukan Klien tersebut.
7.14 Intertek SAI Global may cancel the Client's Certification with immediate effect by giving notice to the Client if the Client's Certification has remained suspended for a period of more than 90 days.	7.14 Intertek SAI Global dapat membatalkan Sertifikasi Klien secara segera dengan memberikan pemberitahuan kepada Klien jika Sertifikasi Klien tetap ditangguhkan untuk jangka waktu lebih dari pada 90 hari.
7.15 If the Client's Certification expires or is cancelled or the Contract is terminated under clause 14, the Client must immediately:	7.15 Apabila Sertifikasi Klien berakhir atau dibatalkan atau Kontrak diakhiri berdasarkan ketentuan klausul 14, maka Klien harus dengan segera:
(a) pay to Intertek SAI Global all amounts due but unpaid by the Client;	(a) membayar kepada Intertek SAI Global semua jumlah yang terhutang namun belum dibayar oleh Klien;
(b) cease using any Certification Mark licensed in connection with the Client's Certification (if any);	(b) berhenti menggunakan Tanda Sertifikasi Berlisensi sehubungan dengan Sertifikasi Klien (jika ada);
(c) withdraw from public display and return to Intertek SAI Global, as required by Intertek SAI Global, the original and all copies of the Certificate;	(c) menarik dari tampilan publik dan mengembalikan kepada Intertek SAI Global, sebagaimana dipersyaratkan oleh Intertek SAI Global, salinan asli dan keseluruhan salinan dari Sertifikat;
(d) cease all advertising, promotions or other publication of the fact of Certification;	(d) menghentikan semua iklan, promosi atau publikasi lain dari fakta Sertifikasi tersebut;
(e) take any steps reasonably required by Intertek SAI Global to notify staff, customers and/or suppliers of the expiry or cancellation of Certification;	(e) mengambil semua langkah yang sewajarnya diperlukan oleh Intertek SAI Global untuk memberitahukan kepada karyawan,





	pelanggan dan/atau pemasok mengenai kedaluwarsa atau pembatalan Sertifikasi;
(f) take steps to repaint or redecorate signage or other parts of the Client's premises, property, plant or uniforms to remove reference to Certification;	(f) mengambil langkah untuk mengecat-ulang atau mendekor ulang papan nama atau bagian lain dari bangunan, properti, instalasi atau seragam Klien untuk menghapus referensi pada Sertifikasi;
(g) stop using Intertek SAI Global's confidential information and, at Intertek SAI Global's option:	(g) berhenti menggunakan informasi rahasia Intertek SAI Global dan, atas kehendak Intertek SAI Global:
(i) return to Intertek SAI Global;	(i) mengembalikan kepada Intertek SAI Global;
(ii) destroy and certify in writing to Intertek SAI Global the destruction of;	(ii) memusnahkan dan menyatakan secara tertulis kepada Intertek SAI Global atas pemusnahannya; atau
(iii) destroy and permit Intertek SAI Global to witness the destruction of all Intertek SAI Global's confidential information in the Client's possession or control; and	(iii) memusnahkan dan mengizinkan Intertek SAI Global untuk menyaksikan pemusnahan semua informasi rahasia Intertek SAI Global yang ada dalam kepemilikan atau pengendalian Klien; dan
(h) take all other necessary steps to ensure that third parties are not misled to believe that the Certification has not expired or been cancelled.	(h) mengambil semua langkah lainnya yang perlu untuk memastikan bahwa pihak ketiga tidak disesatkan untuk mempercayai bahwa Sertifikasi belum kedaluwarsa atau telah dibatalkan.

8. CONFIDENTIALITY

8.1 Intertek SAI Global must ensure that its employees, agents and contractors treat as confidential, and do not disclose to any other third person without the prior written consent of the Client, any proprietary or confidential information belonging to the Client with which Intertek SAI Global becomes acquainted during the term of the Contract except that, where Intertek SAI Global considers it appropriate, Intertek SAI Global may disclose the Client's identity and the nature, status, scope or effect of the Client's Certification.

8.2 Nothing in 8.1 restricts Intertek SAI Global from disclosing information obtained as a result of the services provided, to a relevant regulatory body, wherein Intertek SAI Global's opinion, the health or safety of another party may be compromised.

8. KERAHASIAAN

8.1 Intertek SAI Global harus memastikan bahwa para karyawan, agen dan kontraktornya akan memperlakukan secara rahasia, dan tidak mengungkapkan kepada pihak ketiga mana pun tanpa persetujuan tertulis dari Klien terlebih dahulu, setiap kepemilikan atau informasi rahasia yang dimiliki Klien yang mana Intertek SAI Global menjadi mengetahuinya selama jangka waktu Kontrak kecuali bahwa, di mana Intertek SAI Global menganggapnya layak, Intertek SAI Global dapat mengungkapkan identitas klien dan sifat, status, ruang lingkup atau keberlakuan dari Sertifikasi Klien.

8.2 Tidak ada dalam ketentuan 8.1 membatasi Intertek SAI Global dari mengungkapkan informasi yang diperoleh sebagai akibat dari jasa yang diberikan, kepada suatu badan pengawas yang relevan, di mana menurut pendapat Intertek SAI





	Global, kesehatan atau keselamatan pihak lainnya dapat dibahayakan.
8.3 The Client must treat as confidential and not disclose to any third party without the prior written consent of Intertek SAI Global, any proprietary or confidential information belonging to Intertek SAI Global.	8.3 Klien harus memperlakukan sebagai rahasia dan tidak mengungkapkan kepada pihak ketiga mana pun tanpa persetujuan tertulis dari Intertek SAI Global terlebih dahulu, setiap kepemilikan atau informasi rahasia yang dimiliki oleh Intertek SAI Global.
8.4 The obligations of confidentiality under these terms and conditions do not extend to information that:	8.4 Kewajiban kerahasiaan dibawah ketentuan dan syarat-syarat ini tidak mencakup informasi yang:
(a) is rightfully known to or in the possession or control of the receiving party and not subject to an obligation of confidentiality owed by the receiving party;	(a) berhak diketahui atau dalam kepemilikan atau dikendalikan oleh pihak penerima dan tidak tunduk pada kewajiban kerahasiaan yang dimiliki pihak penerima;
(b) is public knowledge (otherwise than as a result of breach of these terms and conditions);	(b) merupakan pengetahuan publik (selain daripada akibat pelanggaran ketentuan dan syarat-syarat ini);
(c) is required by an accreditation authority to be disclosed; or	(c) diwajibkan oleh otoritas akreditasi untuk diungkapkan; atau
(d) is required by law or the rules of a securities exchange to be disclosed.	(d) diwajibkan oleh ketentuan hukum perundang-undangan atau peraturan bursa saham untuk diungkapkan.
9. INTELLECTUAL PROPERTY RIGHTS	9. HAK KEKAYAAN INTELEKTUAL
The Client acknowledges that:	Klien mengakui bahwa:
(a) Intertek SAI Global is the owner or licensee of copyright, know-how and other intellectual property rights in the Certification Procedures and any associated documentation;	(a) Intertek SAI Global adalah pemilik atau pemegang lisensi hak cipta, pengetahuan dan hak kekayaan intelektual lainnya dalam Prosedur Sertifikasi dan dokumentasi terkait;
(b) no right, title or interest in the Certification Procedures or that documentation is transferred to the Client under the Contract or from the issue of the Certificate; and there may be certain Client information that may be incorporated into documents, reports and/or other intellectual property material generated or developed by Intertek SAI Global ("Data") in a non-identifiable manner in the course of providing the Certification Services. To the extent that there is Data and that Data is owned by the Client, notwithstanding clause 8, the Client grants to Intertek SAI Global a perpetual, non-exclusive, royalty-free licence to use the Data as part of its	(b) Tidak ada hak, hak milik atau kepentingan dalam Prosedur Sertifikasi atau bahwa dokumentasi dialihkan kepada Klien berdasarkan Kontrak atau dari penerbitan Sertifikat; dan mungkin terdapat informasi Klien tertentu yang dapat dimasukkan ke dalam dokumen, laporan dan/atau materi kekayaan intelektual lain yang dihasilkan atau dikembangkan oleh Intertek SAI Global ("Data") dengan cara yang tidak dapat diidentifikasi dalam rangka pemberian Jasa Sertifikasi. Sejauh bahwa terdapat Data dan Data dimiliki oleh Klien, tanpa mengabaikan ketentuan klausul 8, Klien memberikan kepada Intertek SAI Global suatu lisensi terus menerus, non-eksklusif,





business processes provided that Intertek SAI Global does not identify the Client nor breach any applicable privacy obligations nor compromise, prejudice or otherwise damage the Client's business and/or intellectual property rights from a commercial or financial perspective.

bebas- royalti untuk menggunakan Data tersebut sebagai bagian dari proses bisnisnya asalkan bahwa Intertek SAI Global tidak menengarai Klien atau pun melanggar kewajiban privasi mana pun yang berlaku atau membahayakan, berprasangka atau bila tidak, merugikan usaha Klien dan/atau hak kekayaan intelektual dari sudut pandang komersial atau pun finansial.

10. LIMITATION OF LIABILITY

10.1 Intertek SAI Global excludes from these terms and conditions all terms, conditions and warranties implied or conferred by statute (including the Competition and Consumer Act 2010 (Cth)), general law or custom except any term, condition or warranty the exclusion of which would contravene any statute or cause any part of this clause to be void ('non-excludable statutory condition').

10.2 To the fullest extent permitted by law Intertek SAI Global's liability to the Client for breach of any express provision of these terms and conditions or any non-excludable statutory term, condition or warranty (other than an implied warranty of title) is limited at Intertek SAI Global's option to:

- (a) providing the Certification Services again; or
- (b) paying the cost of having the Certification Services supplied again.

10.3 Except to the extent prohibited by the Competition and Consumer Act 2010 (Cth) or any other applicable laws, Intertek SAI Global excludes liability for any loss or damage suffered by the Client (whether direct, indirect, incidental, special and/or consequential damages or loss of profits whatsoever) arising in any way out of any services (including defective services) rendered by Intertek SAI Global or out of the Client's product, process or service the subject of Certification by Intertek SAI Global or any negligent act or omission of Intertek SAI Global, its officers, employees, agents or contractors, including but not limited to profits lost

10. BATASAN KEWAJIBAN

10.1 Intertek SAI Global mengecualikan dari ketentuan dan syarat-syarat ini semua ketentuan, kondisi dan jaminan yang tersirat atau dinyatakan oleh undang-undang (termasuk Undang-undang Persaingan Usaha dan Konsumen 2010 (Cth)), hukum umum atau kebiasaan terkecuali ketentuan, kondisi atau jaminan apa pun yang pengecualiannya mungkin bertentangan dengan Undang-undang apa pun atau yang menyebabkan bagian mana pun dari klausul ini menjadi tidak berlaku ('kondisi hukum perundang-undangan yang tidak dapat dikecualikan').

10.2 Sejauh mana yang diizinkan oleh ketentuan hukum perundang-undangan kewajiban Intertek SAI Global kepada Klien terhadap pelanggaran yang tersirat dari ketentuan dan syarat-syarat ini atau setiap ketentuan hukum, kondisi atau jaminan yang tidak dapat dikecualikan (selain daripada suatu jaminan atas hak milik yang tersirat) terbatas pada pilihan Intertek SAI Global untuk:

- (a) memberikan Jasa Sertifikasi lagi; atau
- (b) Membayar biaya untuk mendapatkan Jasa Sertifikasi yang diberikan lagi.

10.3 Terkecuali sejauh mana yang dilarang oleh Undang-undang Persaingan Usaha dan Konsumen 2010 (Cth) atau ketentuan hukum perundang-undangan lainnya yang berlaku, Intertek SAI Global mengecualikan kewajiban terhadap kerugian atau kerusakan yang diderita oleh Klien (baik secara langsung, tidak langsung, tidak disengaja, khusus dan/atau lanjutan atas kerusakan atau kehilangan keuntungan apa pun) yang timbul dari jasa apa pun (termasuk jasa yang cacat) yang diberikan oleh Intertek SAI Global atau atas produk, proses atau jasa dari Klien yang merupakan subyek Sertifikasi oleh Intertek SAI Global atau tindak kelalaian atau





and damage sustained or incurred as a result of a claim by a third person.

keteledoran dari Intertek SAI Global, para pejabat, karyawan, agen atau kontraktornya, termasuk namun tidak terbatas pada kehilangan keuntungan dan kerusakan yang diderita atau terjadi sebagai akibat klaim oleh pihak ketiga.

11. PERSONAL INFORMATION AND PRIVACY POLICY

In the course of providing the Certification Services, the Client acknowledges that:

- (a) Intertek SAI Global may collect personal information (as defined in the Privacy Act 1988 (Cth) and similar legislation of the Commonwealth and the States and Territories of the Commonwealth);
- (b) if Intertek SAI Global does collect personal information, the collection of such information shall be in accordance with its Privacy Policy (as set out on its website at Privacy Policy); and
- (c) it has read and agrees to the terms of Intertek SAI Global's Privacy Policy.

11. INFORMASI PRIBADI DAN KEBIJAKAN PRIVASI

Dalam rangka menyediakan Jasa Sertifikasi, Klien mengakui bahwa:

- (a) Intertek SAI Global dapat mengumpulkan informasi pribadi (sebagaimana didefinisikan dalam Undang-undang Privasi 1988 (Cth) dan perundang-undangan serupa Negara Persemakmuran dan Negara Bagian dan Wilayah Persemakmuran);
- (b) jika Intertek SAI Global melakukan pengumpulan informasi pribadi, maka pengumpulan informasi tersebut harus sesuai dengan Kebijakan Privasinya (sebagaimana yang tercantum pada situs web Kebijakan Privasi); dan
- (c) ia telah membaca dan menyetujui ketentuan dan syarat-syarat Kebijakan Privasi Intertek SAI Global.

12. INDEMNITY

The Client must indemnify Intertek SAI Global from and against all expenses, losses, damages and costs (on a solicitor and own client basis and whether incurred by or awarded against Intertek SAI Global) that Intertek SAI Global may sustain or incur as a result, whether directly or indirectly, of:

- (a) any breach of these terms and conditions by the Client, including, but not limited to, a breach in respect of which Intertek SAI Global exercises an express right to terminate these terms and conditions; or
- (b) any loss of or damage to any property or injury to or death of any person;
- (i) caused by any negligent act or omission or wilful misconduct of the Client or its officers and employees;

12. GANTI RUGI

Klien harus menanggung agar Intertek SAI Global tidak dirugikan dari dan terhadap semua pengeluaran, kerugian, kerusakan dan biaya (atas pengacara dan klien sendiri dan apakah ditanggung oleh atau dikenakan kepada Intertek SAI Global) yang mana Intertek SAI Global dapat mengalami atau terkena sebagai akibat dari, baik apakah langsung atau tidak langsung, atas:

- (a) setiap pelanggaran apa pun dari ketentuan dan syarat-syarat ini oleh Klien, termasuk, namun tidak terbatas pada, suatu pelanggaran berkenaan dimana Intertek SAI Global menggunakan suatu pernyataan hak untuk mengakhiri ketentuan dan syarat-syarat ini; atau
- (b) kerugian atau kerusakan apa pun terhadap properti apa pun atau cedera atau kematian siapa pun;
- (i) yang disebabkan oleh tindakan kelalaian atau keteledoran atau tindakan yang





	disengaja oleh Klien atau para pejabat atau karyawannya;
(ii) arising out of or in connection with the Client's product, process or service that is the subject of Certification.	(ii) yang timbul dari atau terkait dengan produk, proses atau jasa Klien yang merupakan subyek Sertifikasi.
13. NON-SOLICITATION OF PERSONNEL	13. LARANGAN MEMPEKERJAKAN
The Client must not solicit any Intertek SAI Global officers, employees, agents or contractors during or for six months after the termination of the Contract.	Klien tidak diperbolehkan mempekerjakan setiap pejabat, karyawan, agen atau kontraktor Intertek SAI Global selama atau untuk enam bulan setelah penghentian Kontrak.
14. TERMINATION OF CONTRACT	14. PENGAKHIRAN KONTRAK
14.1 The Client may terminate the Contract at any time by giving 30 days prior notice to Intertek SAI Global.	14.1 Klien dapat mengakhiri Kontrak pada saat kapan pun dengan memberitahukan 30 hari sebelumnya kepada Intertek SAI Global.
14.2 Intertek SAI Global may terminate the Contract with immediate effect by giving notice to the Client if:	14.2 Intertek SAI Global dapat mengakhiri Kontrak dengan pemberlakuan segera dengan memberi pemberitahuan kepada Klien jika:
(a) the Client breaches any of these terms and conditions (other than in a manner permitting suspension under clause 7.10) and fails to remedy the breach within 30 days after receiving notice requiring it to do so;	(a) Klien melanggar salah satu dari ketentuan dan syarat-syarat ini (selain daripada dengan cara mengizinkan penangguhan sesuai ketentuan klausul 7.10) dan gagal untuk memperbaiki pelanggaran tersebut dalam waktu 30 hari setelah menerima pemberitahuan yang mengharuskan melakukannya;
(b) the Client breaches a material provision of these terms and conditions where that breach is not capable of remedy; or	(b) Klien melanggar suatu ketentuan secara mendasar ketentuan dan syarat-syarat ini, di mana pelanggaran tersebut tidak dapat diperbaiki; atau
(c) any event referred to in clause 14.3 happens to the Client.	(c) setiap peristiwa yang disebutkan dalam ketentuan klausul 14.3 yang terjadi kepada Klien.
14.3 The Client must notify Intertek SAI Global immediately if:	14.3 Klien harus memberitahukan kepada Intertek SAI Global segera jika:
(a) there is any change in the direct or indirect beneficial ownership or control of the Client;	(a) terjadi perubahan manfaat kepemilikan atau pengendalian dari Klien secara langsung atau tidak langsung;
(b) it disposes of the whole or any part of its assets, operations or business other than in the ordinary course of business;	(b) ia membuang keseluruhan atau sebagian dari aset, operasi atau bisnisnya selain daripada kegiatan usaha normal;
(c) it ceases to carry on business;	(c) ia berhenti menjalankan bisnis;
(d) it ceases to be able to pay its debts as they become due;	(d) ia berhenti untuk membayar hutangnya ketika jatuh tempo;





(e) any step is taken by a mortgagee to take possession or dispose of the whole or any part of its assets, operation or business;	(e) langkah apa pun yang diambil oleh penggadai untuk mengambil alih atau melepaskan keseluruhan atau sebagian dari aset, operasi atau bisnisnya;
(f) any step is taken to enter into any arrangement between the Client and its creditors;	(f) langkah apa pun yang diambil untuk mengadakan pengaturan di antara Klien dan para kreditornya;
(g) any step is taken to appoint a receiver, a receiver and manager, a trustee in bankruptcy, a liquidator, a provisional liquidator, an administrator or other like person of the whole or any part of its assets or business; or	(g) langkah apa pun yang diambil untuk menunjuk seorang penerima, penerima dan manager, wali dalam hal kepailitan, juru likuidasi, juru likuidasi sementara, administrator atau seseorang semacamnya dari keseluruhan atau sebagian dari aset atau bisnisnya; atau
(h) where the Client is a partnership, any step is taken to dissolve that partnership or a partner dies.	(h) di mana Klien adalah suatu kemitraan, langkah apa pun yang diambil untuk membubarkan kemitraan tersebut atau seorang mitra meninggal dunia.
15. AFTER TERMINATION	15. SETELAH PENGAKHIRAN
15.1 On termination of the Contract the Client must immediately comply with all its obligations under clause 7.14.	15.1 Pada pengakhiran Kontrak, Klien harus segera memenuhi semua kewajibannya dibawah ketentuan klausul 7.14.
15.2 Clauses 8, 9,10,12,13 and 15 survive the termination of the Contract.	15.2 Klausul 8, 9,10,12,13 dan 15 akan tetap berlaku meski terjadi pengakhiran Kontrak tersebut.
15.3 Termination of the Contract under clause 14 (Termination) or clause 23 (Force Majeure) does not affect any accrued rights or remedies of either party.	15.3 Pengakhiran Kontrak sesuai ketentuan klausul 14 (Pengakhiran) atau klausul 23 (Keadaan Kahar) tidak akan mempengaruhi setiap hak atau upaya perbaikan masing-masing pihak.
16. APPEALS	16. BANDING
The Client may have rights of appeal against Certification decisions of Intertek SAI Global. Appeals information is published by Intertek SAI Global from time to time and available upon request from the Client.	Klien dapat mempunyai hak banding terhadap keputusan Sertifikasi Intertek SAI Global. Informasi atas Banding dipublikasikan oleh Intertek SAI Global dari waktu ke waktu dan tersedia berdasarkan permintaan dari Klien.
17. ASSIGNMENT	17. PENGALIHAN
17.1 Intertek SAI Global may assign all or any of its rights under the Contract.	17.1 Intertek SAI Global dapat mengalihkan semua atau sebagian dari hak berdasarkan ketentuan Kontrak.
17.2 The Client must not assign or otherwise transfer all or any of its rights under the Contract without the prior written consent of Intertek SAI Global.	17.2 Klien tidak diperbolehkan mengalihkan atau bila tidak mengalihkan semua atau sebagian haknya berdasarkan ketentuan Kontrak tanpa persetujuan tertulis sebelumnya dari Intertek SAI Global.
18. SEVERABILITY	18. KETERPISAHAN
If all or any part of the Contract is found by a Court of competent jurisdiction to be illegal, void or unenforceable, the illegal, void or unenforceable	Apabila semua atau sebagian dari Kontrak didapati oleh Peradilan suatu wilayah kekuasaan hukum yang berwenang menjadi ilegal, tidak sah atau tak





part(s) may be severed from the Contract and the remaining parts of the Contract shall continue in force.	dapat diberlakukan, bagian yang illegal, tidak sah atau tak dapat diberlakukan tersebut dapat dihapus dari Kontrak tersebut dan bagian sisanya akan tetap berlaku.
19. WAIVER The failure of Intertek SAI Global at any time to require performance of any obligation under the Contract is not a waiver of its right at any other time to require performance of that or any other obligation under the Contract.	19. PELEPASAN HAK Kegagalan Intertek SAI Global saat kapan pun untuk menuntut pelaksanaan suatu kewajiban berdasarkan ketentuan Kontrak bukanlah suatu pelepasan haknya di lain waktu untuk mengharuskan pelaksanaannya atau kewajiban apa pun dibawah ketentuan Kontrak tersebut.
20. RELATIONSHIP The Contract does not create any fiduciary, employment, agency or partnership relationship between Intertek SAI Global and the Client.	20. HUBUNGAN Kontrak ini tidak menciptakan hubungan fidusia, pekerjaan, agensi atau kemitraan antara Intertek SAI Global dan Klien.
21. NOTICE 21.1 A party giving notice or notifying under the Contract must do so in writing: (a) directed to the recipient's address for correspondence as nominated in the Application or varied by any notice; and (b) hand delivered or sent by prepaid post or facsimile to that address. 21.2 A notice given in accordance with clause 21.1 is taken to be received: (a) if hand delivered, on delivery; (b) if sent by prepaid post, three days after the date of posting; or (c) if sent by facsimile, when the sender's facsimile system generates a message confirming successful transmission of the total number of pages of the notice.	21. PEMBERITAHUAN 21.1 Suatu pihak yang memberikan pemberitahuan atau memberitahu berdasarkan ketentuan Kontrak harus melakukannya secara tertulis: (a) ditujukan kepada alamat penerima untuk korespondensi sebagaimana dinyatakan dalam Aplikasi atau diubah dengan pemberitahuan; dan (b) dikirimkan langsung atau dikirim melalui pos dibayar di muka atau faksimile ke alamat tersebut. 21.2 Pemberitahuan yang diberikan sesuai ketentuan klausul 21.1 akan dianggap telah diterima: (a) apabila dikirim langsung, pada saat pengantaran; (b) apabila dikirimkan dengan surat dibayar di muka, tiga hari setelah tanggal pengeposan; atau (c) apabila dikirimkan melalui faksimile, ketika sistem faksimile pengirim menghasilkan pesan yang mengkonfirmasi keberhasilan pengiriman jumlah total halaman pemberitahuan tersebut.
22. HEADINGS Headings are for ease of reference only and do not affect the meaning of these terms and conditions.	22. JUDUL Judul dimaksudkan hanya untuk kemudahan dalam merujuk saja dan tidak mempengaruhi makna dari ketentuan dan syarat-syarat ini.
23. FORCE MAJEURE	23. KEADAAN KAHAR





No party is liable for any failure to perform or delay in performing its obligations under the Contract if that failure or delay is due to flood, fire, earthquake or other occurrence beyond that party's reasonable control. If that failure or delay exceeds 60 days, the other party may terminate the Contract with immediate effect by giving notice to the other party.

Tidak ada pihak yang bertanggungjawab atas kegagalan untuk melaksanakan atau menunda pelaksanaan kewajibannya berdasarkan ketentuan Kontrak apabila kegagalan atau penundaan tersebut disebabkan oleh banjir, kebakaran, gempa bumi atau kejadian lain diluar kendali pihak tersebut. Apabila kegagalan atau penundaan tersebut melebihi 60 hari, maka pihak lainnya dapat mengakhiri Kontrak tersebut dengan pemberlakuan segera dengan memberikan pemberitahuan kepada pihak lainnya.

24. ANTI-BRIBERY

24.1 The Client agrees that:

- (a) It shall not commit, authorise or permit any action which would cause Intertek SAI Global and/or Intertek SAI Global's affiliates to be in violation of any applicable anti-bribery laws or regulations;
- (b) this obligation applies in particular to illegal payments to government officials, representatives of public authorities or their associates, families or close friends; and
- (c) it will never offer or give, or agree to give, to any employee, representative or third party acting on Intertek SAI Global's behalf nor accept, or agree to accept from any employee, representative or third party acting on Intertek SAI Global's behalf, any gift or benefit, be it monetary or otherwise, that could breach any law or policy applicable to Intertek SAI Global.

24.2 The Client will notify Intertek SAI Global immediately if it:

- (a) becomes aware;
- (b) has reason to believe; or
- (c) has any specific suspicion that there has been or will be a breach of this clause 24.1

24. ANTI PENYUAPAN

24.1 Klien akan menyetujui bahwa:

- (a) Ia tidak akan melakukan, memberi kuasa atau mengizinkan tindakan apa pun yang akan menyebabkan Intertek SAI Global dan/atau afiliasi Intertek SAI Global melanggar ketentuan hukum perundang-undangan atau peraturan anti penyuapan yang berlaku;
- (b) kewajiban ini pada khususnya berlaku pada pembayaran ilegal kepada pejabat pemerintah, perwakilan pihak berwenang atau rekan kerja mereka, keluarga atau teman dekat mereka; dan
- (c) Ia tidak akan pernah menawarkan atau memberikan atau setuju untuk memberi kepada karyawan, perwakilan, atau pihak ketiga manapun yang bertindak atas nama Intertek SAI Global atau menerima, atau setuju untuk menerima dari karyawan, perwakilan atau pihak ketiga manapun yang bertindak atas nama Intertek SAI Global, hadiah atau manfaat apa pun, baik itu moneter atau semacamnya, sesuatu yang bisa melanggar ketentuan hukum perundang-undangan apa pun atau kebijakan yang berlaku di Intertek SAI Global.

24.2 Klien akan memberitahu segera Intertek SAI Global apabila ia:

- (a) menyadari;
- (b) mempunyai alasan untuk yakin; atau
- (c) mempunyai kecurigaan secara khusus bahwa telah terjadi atau akan terjadi





or there was corruption involved with regard to the negotiation, conclusion or performance of this Agreement	pelanggaran ketentuan klausul 24.1 ini atau telah terjadi korupsi yang terkait sehubungan dengan negosiasi, kesepakatan atau dalam pelaksanaan Perjanjian ini.
24.3 Any breach of this clause 24.1 by the Client, its employees, agents or sub-contractors (whether with or without the knowledge of the Client) will be deemed a material breach of this Agreement, and will entitle Intertek SAI Global to recover from the Client the amount of any loss resulting from such material breach and to recover from the Client the amount or value of any such gift, consideration or commission.	24.3 Setiap Pelanggaran dari ketentuan klausul 24.1 ini oleh Klien, karyawan, agen atau sub-kontraktornya (baik apakah dengan atau tanpa sepengetahuan Klien) akan dianggap suatu pelanggaran secara mendasar dari Perjanjian ini, dan akan memberikan hak kepada Intertek SAI Global untuk mendapatkan penggantian dari Klien sejumlah atas setiap kerugian yang diakibatkan oleh pelanggaran secara mendasar tersebut dan untuk mendapatkan penggantian dari Klien sejumlah atau senilai dari hadiah, pertimbangan atau komisi tersebut.
24.4 The Client acknowledges that it has read a copy of Intertek SAI Global's Whistleblowing Policy (as set out on its website at SAI Governance Policies) including reporting hotline procedures and communicated the same to its relevant employees, agents and contractors.	24.4 Klien mengakui bahwa, ia telah membaca salinan Kebijakan Whistleblowing/Meniup Peluit Intertek SAI Global (sebagaimana tercantum pada situs webnya di SAI Governance Policies) termasuk prosedur pelaporan saluran pengaduan/hotline dan mengkomunikasikan hal yang sama kepada karyawan, agen dan para kontraktornya yang relevan.
25. GOVERNING LAW AND JURISDICTION	25. KETENTUAN HUKUM PERUNDANG-UNDANGAN DAN YURISDIKSI YANG MENGATUR
25.1 The Contract is governed by the law applicable in Indonesia.	25.1 Kontrak tersebut diatur dengan ketentuan hukum perundang-undangan yang berlaku di Indonesia.
25.2 Each party submits to the non-exclusive jurisdiction of the courts of the Indonesia.	25.2 Masing-masing pihak akan menyerahkan ke yurisdiksi non-eksklusif pada pengadilan Indonesia.
25.3 Any disputes arising from the Certification Procedures governed by JAS-ANZ or any other accreditation authority is governed by the law applicable in the country the accreditation body is domiciled.	25.3 Setiap perselisihan yang timbul dari Prosedur Sertifikasi yang diatur oleh JAS-ANZ atau otoritas akreditasi lainnya diatur oleh ketentuan hukum perundang-undangan yang berlaku di negara badan akreditasi tersebut berdomisili.
26. TERM	26. JANGKA WAKTU
26.1 This Agreement shall commence on the commencement date stipulated in the Proposal or Statement of Work and shall continue for a minimum period of 36 months.	26.1 Kesepakatan ini akan berlaku sejak tanggal yang tercantum dalam Proposal atau Surat Perintah Kerja dan akan berlanjut untuk jangka waktu minimal 36 bulan.
26.2 Thereafter this Agreement shall be automatically renewed each year on the anniversary date of commencement, unless	26.2 Selanjutnya, kesepakatan ini akan diperpanjang secara otomatis setiap tahunnya sebelum pekerjaan dilaksanakan, kecuali diakhiri





terminated by either party giving to the other party
not less than ninety (90) days written notice.

oleh salah satu pihak melalui pemberitahuan
tertulis kepada pihak lainnya tidak kurang dari
sembilan puluh (90) hari.





Certification Mark Licence Terms and Conditions

Ketentuan dan Syarat-syarat Lisensi Tanda Sertifikasi

1. APPLICABILITY	1. BERLAKUNYA.
1.1 These terms govern the use of the Licensed Certification Mark by the Client.	1.1 Ketentuan dan syarat-syarat ini mengatur penggunaan Tanda Sertifikasi oleh Klien
1.2 These terms are intended to be consistent with any applicable Rules. If and to the extent that there is any inconsistency between any of these terms and any applicable Rules, the Rules will prevail.	1.2 Ketentuan ini dimaksudkan agar konsisten dengan Peraturan yang berlaku. Apabila dan sejauh terdapat ketidak konsistenan di antara ketentuan ini dan Peraturan yang berlaku, maka Peraturan yang akan berlaku.
1.3 These terms prevail over any other terms that may be communicated by the Client in writing or orally, whether in an order, letter, other document, in negotiations or otherwise.	1.3 Ketentuan ini berlaku untuk setiap ketentuan lain yang mungkin dikomunikasikan oleh Klien secara tertulis atau secara lisan, baik apakah dalam bentuk perintah, surat atau dokumen lain, dalam negosiasi atau semacamnya.
1.4 No person acting or purporting to act on behalf of Intertek SAI Global shall have authority to waive or change these terms orally. Waivers or changes shall have effect only if made in writing and signed by a duly authorised officer of Intertek SAI Global.	1.4 Tidak seorang pun yang bertindak atau mengklaim bertindak atas nama Intertek SAI Global akan memiliki wewenang untuk mengecualikan atau mengubah ketentuan ini secara lisan. Pengecualian atau perubahan hanya akan berlaku apabila dibuat secara tertulis dan ditandatangani oleh pejabat Intertek SAI Global yang berwenang.
1.5 Intertek SAI Global may vary these terms at any time by notifying the Client in writing, including any variation necessary to satisfy any direction given to Intertek SAI Global by JAS-ANZ or any other accreditation authority.	1.5 Intertek SAI Global dapat mengubah ketentuan dan syarat-syarat ini setiap saat dengan memberitahukan secara tertulis kepada Klien, termasuk perubahan apa pun yang diperlukan untuk memenuhi setiap arahan yang diberikan kepada Intertek SAI Global oleh JAS-ANZ atau otoritas akreditasi lainnya.
2. INTERPRETATION	2. PENAFSIRAN
2.1 Unless a contrary intention appears, expressions used in these terms have the meanings given to them in the Certification Terms.	2.1 Apabila timbul suatu maksud yang bertentangan, ungkapan yang digunakan dalam ketentuan ini memiliki pengertian yang diberikan kepadanya sesuai dengan Ketentuan Sertifikasi.
2.2 In these terms:	2.2 Dalam istilah-istilah ini:
'Certificate and Licence' means the document entitled 'Certificate and Licence' issued by Intertek SAI Global to the Client;	'Sertifikat dan Lisensi' berarti dokumen yang berjudul 'Sertifikat dan Lisensi' yang diterbitkan oleh Intertek SAI Global kepada Klien;





‘Certification Terms’ means Intertek SAI Global’s Certification Services Terms and Conditions, as amended from time to time;	‘Ketentuan Sertifikasi’ berarti Ketentuan dan Syarat-syarat Jasa Sertifikasi Intertek SAI Global, sebagaimana diubah dari waktu ke waktu;
‘Client’ means the company, organisation or persons, or a combination of them acting in partnership, specified in the Certificate and Licence;	‘Klien’ berarti perusahaan, organisasi atau orang, atau perpaduan dari mereka yang bertindak dalam kemitraan, yang disebutkan dalam Sertifikat dan Lisensi;
‘Licence’ means the licence granted under clause 3.1;	‘Lisensi’ berarti lisensi yang diberikan berdasarkan klausul 3.1;
‘Licensed Certification Mark’ means the Certification Mark identified in the Certificate and Licence;	‘Lisensi Tanda Sertifikasi’ berarti Tanda Sertifikasi yang diidentifikasi dalam Sertifikat dan Lisensi;
‘Materials’ means products, and information and promotional material about a product, process or service;	‘Materi’ berarti produk, dan informasi serta materi promosional tentang produk, proses atau jasa;
‘Rules’ means rules governing the use of a registered Certification Mark as lodged with the Australian Industrial Property Organisation;	‘Peraturan’ berarti peraturan yang mengatur penggunaan Tanda Sertifikasi yang terdaftar sebagaimana diajukan kepada Australian Industrial Property Organisation (Organisasi Perlindungan Kekayaan Industri Australia);
‘Intertek SAI Global’ means PT Intertek SAI Global Indonesia and/or SAI Global Certification Services Pty Limited (ACN 59 108 716 669).	‘Intertek SAI Global’ berarti PT Intertek SAI Global Indonesia dan/atau SAI Global Certification Services Pty Limited (ACN 59 108 716 669).

3. LICENCE

3.1 The issue of a Certificate and Licence grants to the Client a non-exclusive licence to use the Licensed Certification Mark as a Certification trade mark in relation to the product, process or service for the Site and by reference to the standard or other specified requirement identified in the Certificate and Licence.

3.2 The issue of the Licence to the Client does not restrict Intertek SAI Global’s right to use or license the use of the Licensed Certification Mark to any other person.

3. LISENSI

3.1 Penerbitan suatu Sertifikat dan Lisensi akan memberikan kepada Klien suatu lisensi tidak eksklusif untuk menggunakan Tanda Sertifikasi Berlisensi sebagai suatu merek dagang Sertifikasi berkenaan dengan produk, proses atau jasa untuk Tempat/Lokasi tersebut dan dengan mengacu kepada standar atau persyaratan khusus lainnya yang diidentifikasi dalam Sertifikat dan Lisensi tersebut.

3.2 Penerbitan Lisensi kepada Klien tidak membatasi hak Intertek SAI Global untuk menggunakan atau memberi lisensi penggunaan Tanda Sertifikasi berlisensi kepada pihak lain mana pun.

4. CLIENT’S OBLIGATIONS

General

4.1 The Client must ensure that the Licensed Certification Mark is:

4. KEWAJIBAN KLIEN

Umum

4.1 Klien harus menjamin bahwa Tanda Sertifikasi Berlisensi:





(a) not used except in accordance with the Licence;	(a) tidak digunakan terkecuali sesuai dengan Lisensi;
(b) not used in any way which causes confusion or deception or would be likely to deceive or cause confusion; and	(b) tidak digunakan dengan cara apa pun yang menyebabkan kebingungan atau penipuan atau cenderung untuk menipu atau menyebabkan kebingungan; dan
(c) used in accordance with any guidelines on use published by Intertek SAI Global from time to time.	(c) digunakan sesuai dengan pedoman penggunaan yang diterbitkan oleh Intertek SAI Global dari waktu ke waktu.
<i>Additional obligations for manufactured goods made under a licence relating to compliance of a product</i>	<i>Kewajiban tambahan untuk barang-barang manufaktur yang dibuat sesuai lisensi berkenaan dengan kesesuaian suatu produk</i>
4.2 Where the Licence relates to a certified product that is a manufactured good, the Client must ensure that:	4.2 Di mana Lisensi berkenaan dengan produk bersertifikasi yang merupakan barang manufaktur, Klien harus memastikan bahwa:
(a) when physically applied to goods, the Licensed Certification Mark is:	(a) apabila diterapkan secara fisik pada barang, maka Tanda Sertifikasi Berlisensi harus:
(i) accompanied by the number of the Certificate and Licence; and	(i) disertai dengan nomor dari Sertifikat dan Lisensi; dan
(ii) applied to goods prior to their despatch from a site covered by the Certificate and Licence.	(ii) diterapkan pada barang sebelum dikirimkannya dari tempat/lokasi yang tercakup dalam Sertifikat dan Lisensi.
(b) when the Licensed Certification Mark is physically applied to components manufactured by a contractor or agent of the Client prior to further processing or assembly, the Client has submitted details to Intertek SAI Global for prior approval and made arrangements to guarantee access by Intertek SAI Global or PT Intertek SAI Global Indonesia to the premises of the contractor or agent unless otherwise waived in writing by a duly authorised officer of Intertek SAI Global.	(b) apabila Tanda Sertifikasi Berlisensi diterapkan secara fisik pada komponen yang dimanufaktur oleh kontraktor atau agen Klien tersebut sebelum diproses atau dirakit lebih lanjut, Klien telah menyerahkan rinciannya kepada Intertek SAI Global untuk mendapatkan persetujuan sebelumnya dan membuat pengaturan untuk menjamin akses oleh Intertek SAI Global atau PT Intertek SAI Global Indonesia ke tempat kontraktor atau agen kecuali jika diputuskan lain secara tertulis oleh pejabat berwenang Intertek SAI Global.





<i>Use of Licensed Certification Mark</i>	<i>Penggunaan Tanda Sertifikasi Berlisensi</i>
4.3 The Client agrees with Intertek SAI Global:	4.3 Klien sepakat dengan Intertek SAI Global:
(a) to use the Licensed Certification Mark in accordance with the Licence and any reasonable directions issued by Intertek SAI Global from time to time including directions in relation to statements acknowledging that the Client does not own the Licensed Certification Mark;	(a) untuk menggunakan Tanda Sertifikasi Berlisensi sesuai dengan Lisensi dan arahan wajar yang dikeluarkan oleh Intertek SAI Global dari waktu ke waktu termasuk arahan terkait dengan pernyataan yang mengakui bahwa Klien tidak memiliki Tanda Sertifikasi Berlisensi;
(b) on request by Intertek SAI Global, to submit samples of Materials;	(b) atas permintaan Intertek SAI Global, untuk menyerahkan contoh Materi/Bahan;
(c) to promptly correct any failure to comply with paragraph (a), including by complying with any timely and reasonable directions issued by Intertek SAI Global in relation to Materials submitted to Intertek SAI Global under paragraph (b);	(c) untuk segera memperbaiki setiap kegagalan guna memenuhi ketentuan ayat (a), termasuk dengan memenuhi arahan yang tepat waktu dan wajar yang dikeluarkan oleh Intertek SAI Global sehubungan dengan Materi/Bahan yang diserahkan kepada Intertek SAI Global sesuai ketentuan ayat (b);
(d) not to alter, modify or deface in any way representations of the Licensed Certification Mark;	(d) tidak mengubah, memodifikasi atau merusak dengan cara apa pun gambaran Tanda Sertifikasi Berlisensi;
(e) to report to Intertek SAI Global any suspected or actual unauthorised use of the Licensed Certification Mark of which the Client becomes aware;	(e) melaporkan kepada Intertek SAI Global penggunaan yang dicurigai atau tidak sah dari Tanda Sertifikasi Berlisensi, dimana Klien menyadarinya;
(f) to provide all access and co-operation reasonably requested by Intertek SAI Global to protect the Licensed Certification Mark and to ensure compliance with these terms;	(f) menyediakan semua akses dan kerjasama yang sewajarnya diminta oleh Intertek SAI Global guna melindungi Tanda Sertifikasi Berlisensi dan untuk menjamin pemenuhan ketentuan ini;
(g) not to represent that it owns or has any rights in relation to the Licensed Certification Mark other than the Licence;	(g) tidak menyatakan bahwa ia memiliki atau mempunyai hak apa pun yang terkait dengan Tanda Sertifikasi Berlisensi selain dari pada Lisensi tersebut;
(h) not to question or challenge the validity or ownership of the Licensed Certification Mark; and	(h) tidak mempertanyakan atau menentang keabsahan atau kepemilikan Tanda Sertifikasi Berlisensi; dan
(i) not to apply for registration of any trade mark, business name or company name that incorporates any name or logo the same as, substantially identical with or deceptively similar to the Licensed Certification Mark, without the written consent of Intertek SAI Global.	(i) tidak mengajukan pendaftaran merek dagang, nama usaha atau nama perusahaan apa pun yang menyertakan nama atau logo yang sama seperti, yang secara substansial identik dengan atau secara sekilas mirip dengan Tanda Sertifikasi Berlisensi, tanpa persetujuan tertulis dari Intertek SAI Global.





5. USE OF CERTIFICATE AND LICENCE	5. PENGGUNAAN SERTIFIKAT DAN LISENSI.
5.1 The Client must not, without Intertek SAI Global's permission, alter, modify, deface or destroy the Certificate and Licence.	5.1 Klien tidak boleh, tanpa persetujuan Intertek SAI Global, mengubah, memodifikasi, merusak atau memusnahkan Sertifikat dan Lisensi.
5.2 The Client may publicise the fact that the Licence has been granted and may use the Certificate and Licence as evidence of the Licence. The Client may copy the Certificate and Licence provided that each copy is clearly identified as a copy.	5.2 Klien dapat mempublikasi fakta bahwa Lisensi telah diberikan dan dapat menggunakan Sertifikat dan Lisensi sebagaimana dibuktikan dengan Lisensi tersebut. Klien dapat menyalin Sertifikat dan Lisensi tersebut, dengan ketentuan setiap salinan dengan jelas ditandai sebagai salinan.
5.3 The original and all copies of the Certificate and Licence remain the property of Intertek SAI Global and must be returned immediately if requested by Intertek SAI Global.	5.3 Salinan asli dan semua Salinan Sertifikat dan Lisensi akan tetap menjadi milik Intertek SAI Global dan harus dikembalikan segera apabila diminta oleh Intertek SAI Global.
6. CLIENT'S WARRANTY AND INDEMNITY	6. JAMINAN DAN PERTANGGUNGAN
6.1 The Client warrants to Intertek SAI Global that the Licensed Certification Mark is used only in accordance with the Licence, unless otherwise approved in writing by Intertek SAI Global.	6.1 Klien menjamin kepada Intertek SAI Global bahwa, Tanda Sertifikasi Berlisensi hanya digunakan sesuai dengan Lisensi, kecuali jika disetujui secara tertulis oleh Intertek SAI Global.
6.2 The Client indemnifies Intertek SAI Global from and against all losses, damages, expenses and costs (on a solicitor and own client basis and whether incurred by or awarded against Intertek SAI Global) that Intertek SAI Global may sustain or incur as a result, whether directly or indirectly, of:	6.2 Klien akan menanggung Intertek SAI Global dari dan terhadap semua kerugian, kerusakan, pengeluaran dan biaya (atas pengacara dan klien sendiri dan apakah ditanggung oleh atau dikenakan kepada Intertek SAI Global) bahwa Intertek SAI Global dapat mempertahankan atau mengadakan akibat dari, baik apakah langsung atau tidak langsung, atas:
(a) any breach of these terms by the Client including, but not limited to, a breach in respect of which Intertek SAI Global exercises an express right to terminate the Licence;	(a) setiap pelanggaran dari ketentuan ini oleh Klien termasuk, namun tidak terbatas pada, suatu pelanggaran yang mana Intertek SAI Global melakukan haknya untuk mengakhiri Lisensi tersebut;
(b) any negligent act or omission or wilful misconduct of the Client or its officers, employees and agents; or	(b) tindakan kelalaian atau kekeledoran atau kesalahan yang disengaja oleh Klien atau pejabat, karyawan dan agennya; atau
(c) any loss of or damage to any property or injury to or death of any person resulting, wholly or partly, from any product, process or service in relation to which the Licensed Certification Mark has been used by the Client.	(c) setiap kerugian atau kerusakan terhadap properti apa pun atau cedera atau yang mengakibatkan kematian seseorang, secara keseluruhan atau sebagian, dari produk, proses atau jasa apa pun sehubungan dengan Tanda Sertifikasi Berlisensi yang telah digunakan oleh Klien.
7. ADDITIONAL REMEDIES FOR BREACH OF WARRANTY	7. PEMULIHAN TAMBAHAN UNTUK PELANGGARAN JAMINAN





If the Client breaches any warranty in clause 6.1, or any other provision of these terms the Client must at its cost:	Apabila Klien melanggar jaminan apa pun sesuai ketentuan klausul 6.1, atau ketentuan lain dari ketentuan ini Klien atas biayanya sendiri harus:
(a) immediately notify Intertek SAI Global and provide any information reasonably requested by Intertek SAI Global;	(a) segera memberitahukan Intertek SAI Global dan memberikan informasi apa pun yang sewajarnya diminta oleh Intertek SAI Global;
(b) promptly comply with any direction which Intertek SAI Global may issue to prevent further breach or minimise the adverse consequences of breach (either to Intertek SAI Global or to any member of the public), including a direction to:	(b) segera mematuhi arahan yang mungkin dikeluarkan oleh Intertek SAI Global untuk mencegah pelanggaran lebih lanjut atau meminimalkan konsekuensi pelanggaran yang merugikan (baik terhadap Intertek SAI Global atau kepada anggota masyarakat manapun), termasuk arahan untuk:
(i) cease supply of goods or services;	(i) menghentikan pasokan barang atau jasa;
(ii) take steps to modify goods or services before supply;	(ii) mengambil langkah-langkah untuk memodifikasi barang atau jasa sebelum memasok;
(iii) destroy goods;	(iii) memusnahkan barang;
(iv) modify or destroy Materials;	(iv) memodifikasi atau memusnahkan Material;
(v) provide information (including Materials) to the public;	(v) menyediakan informasi (termasuk Material) kepada publik;
(vi) where the breach relates to goods already released for sale and which will or may cause injury to any person:	(vi) di mana pelanggaran tersebut berkaitan dengan barang yang telah dilepas untuk dijual dan yang akan atau dapat menyebabkan cedera pada seseorang:
(c) under take a recall of the goods; and	(c) mengupayakan penarikan kembali barang tersebut; dan
(d) take such other action as may be reasonably requested by Intertek SAI Global;	(d) mengambil tindakan lain yang mungkin sewajarnya diminta oleh Intertek SAI Global;
(i) cease representing, either expressly or by implication, that they have any current Certification or Certificate and Licence; and	(i) berhenti menyatakan, baik secara ekspresif atau secara tersirat, bahwa mereka memiliki Sertifikasi atau Sertifikat dan Lisensi; dan
(ii) keep Intertek SAI Global informed, in writing, of action taken pursuant to any direction issued under paragraph (b).	(ii) menjaga Intertek SAI Global tetap terinformasi, secara tertulis, atas tindakan yang diambil sesuai dengan arahan yang diterbitkan berdasarkan ketentuan ayat (b).
8. ROYALTY Where applicable, the Client must:	8. ROYALTI Di mana dapat diterapkan, Klien harus:
(a) provide a fully reconciliation of the royalty payable to Intertek SAI Global, such royalty to be calculated in accordance with the	(a) menyediakan rekonsiliasi sepenuhnya dari royalti yang terhutang kepada Intertek SAI Global, royalti tersebut harus dihitung





royalty payment specified in the Schedule of Fees (or elsewhere);	sesuai dengan pembayaran royalti yang ditentukan dalam Jadwal Biaya (atau di mana pun);
(b) promptly pay to SAI Global Pty Limited or PT Intertek SAI Global Indonesia the royalty payable; and	(b) segera membayar kepada SAI Global Pty Limited atau PT Intertek SAI Global Indonesia royalti yang terhutang tersebut; dan
(c) co-operate with Intertek SAI Global and PT Intertek SAI Global Indonesia and grant to PT Intertek SAI Global Indonesia reasonable access to all relevant books and records to enable Intertek SAI Global to verify the royalties due to it, if required by Intertek SAI Global and pay any shortfall amount.	(c) bekerja sama dengan Intertek SAI Global dan PT Intertek SAI Global Indonesia dan memberikan kepada PT Intertek SAI Global Indonesia akses yang wajar kepada semua pembukuan dan pencatatan yang relevan untuk memungkinkan Intertek SAI Global melakukan verifikasi royalti yang jatuh tempo kepadanya, jika diminta oleh Intertek SAI Global dan membayar sejumlah kekurangannya.
The Client shall not be entitled to any refund of any royalties paid in the event of termination or suspension of the Licence.	Klien tidak akan berhak atas pengembalian royalti apa pun yang dibayarkan dalam hal terjadi pengakhiran atau penangguhan Lisensi.
The Client acknowledges that PT Intertek SAI Global Indonesia reserves the right to amend its Schedule of Fees at any time.	Klien mengakui bahwa PT Intertek SAI Global Indonesia berhak untuk mengubah Jadwal Biayanya setiap saat.
9. SAI GLOBAL'S WARRANTY	9. JAMINAN SAI GLOBAL
Intertek SAI Global warrants that it has all rights required to grant the Licence to the Client.	Intertek SAI Global menjamin bahwa ia mempunyai semua hak yang diperlukan untuk memberikan Lisensi kepada Klien.
10. TERMINATION	10. PENGAKHIRAN
10.1 The Licence terminates on the expiry date in the Certificate and Licence or when terminated in accordance with this clause 10.	10.1 Lisensi akan berakhir pada tanggal kedaluwarsa di Sertifikat dan Lisensi atau apabila diakhiri sesuai dengan ketentuan klausul 10 ini.
10.2 The Client may terminate the Licence upon giving notice to Intertek SAI Global.	10.2 Klien dapat mengakhiri Lisensi berdasarkan pemberitahuan kepada Intertek SAI Global.
10.3 If the Client's Certification is suspended, cancelled or expires, the Client must promptly:	10.3 Apabila Sertifikasi Klien ditangguhkan, dibatalkan atau kedaluwarsa, maka Klien harus segera:
(a) notify Intertek SAI Global; and	(a) memberitahukan Intertek SAI Global; dan
(b) furnish Intertek SAI Global with all information reasonably requested by Intertek SAI Global to ascertain the nature and extent of the breach.	(b) menyediakan Intertek SAI Global dengan semua informasi yang sewajarnya diminta oleh Intertek SAI Global untuk memastikan sifat dan tingkat pelanggaran.
10.4 If the Client's Certification is:	10.4 Apabila Sertifikasi Klien:
(a) suspended in accordance with the Certification Terms, then the Licence is also suspended and the Client must, during the	(a) ditangguhkan sesuai dengan Ketentuan Sertifikasi, maka Lisensi tersebut juga akan ditangguhkan dan Klien harus, selama masa





suspension period, comply with any reasonable written directions issued by Intertek SAI Global in relation to use of the Licensed Certification Mark;	penangguhan mematuhi petunjuk tertulis yang diterbitkan oleh Intertek SAI Global sehubungan dengan penggunaan Tanda Sertifikasi Berlisensi tersebut;
(b) cancelled or expires in accordance with the Certification Terms, then the Licence automatically and immediately terminates.	(b) Dibatalkan atau kedaluwarsa sesuai dengan Ketentuan Sertifikasi, maka Lisensi akan secara otomatis dan segera berakhir.
10.5 Intertek SAI Global may terminate the Licence with immediate effect by giving notice to the Client if:	10.5 Intertek SAI Global dapat mengakhiri Lisensi tersebut dengan segera dengan memberikan pemberitahuan kepada Klien jika:
(a) the Client breached any of these terms and fails to remedy the breach within 30 days after receiving notice requiring it to do so; or	(a) Klien melanggar salah satu ketentuan ini dan gagal memperbaiki pelanggaran tersebut dalam waktu 30 hari setelah menerima pemberitahuan yang mengharuskan untuk melakukannya; atau
(b) the Client breaches a material provision of these terms where that breach is not capable of remedy.	(b) Klien melanggar sebuah ketentuan material dari ketentuan ini di mana pelanggaran tersebut tidak dapat diperbaiki.
11. APPEALS	11. BANDING
The Client may have rights of appeal against licensing decisions of Intertek SAI Global including rights given by applicable Rules. Applicable Rules and appeals information are published by Intertek SAI Global from time to time, and available to the Client upon request.	Klien dapat mempunyai hak banding terhadap keputusan perizinan Intertek SAI Global termasuk hak yang diberikan oleh Peraturan yang berlaku. Peraturan yang berlaku dan informasi banding dipublikasikan oleh Intertek SAI Global dari waktu ke waktu, dan tersedia untuk Klien atas permintaan.
12. AFTER TERMINATION	12. SETELAH PENGAKHIRAN
12.1 On termination of the Licence, the Client:	12.1 Pada pengakhiran Lisensi tersebut, Klien:
(a) must, subject to clause 12.1 (b), immediately cease using and has no further right to use, including on or in Materials:	(a) harus, tunduk pada ketentuan klausul 12.1 (b), segera berhenti menggunakan dan tidak memiliki hak lagi untuk menggunakan, termasuk atas atau pada Material:
(i) the Licensed Certification Mark; or	(i) Tanda Sertifikasi Berlisensi; atau
(ii) any trademark including a Certification mark that is substantially identical with or deceptively similar to the Licensed Certification Mark;	(ii) merek dagang apa pun termasuk tanda Sertifikasi yang secara substansial identik dengan atau terkesan mirip menyerupai Tanda Sertifikasi Berlisensi;
(b) may continue to sell goods marked with the Licensed Certification Mark before the termination of the Licence unless Intertek SAI Global directs that the Certification Mark be erased or masked from the goods before their sale;	(b) dapat terus menjual barang-barang yang ditandai dengan Tanda Sertifikasi Berlisensi sebelum berakhirnya Lisensi tersebut terkecuali apabila Intertek SAI Global mengarahkan agar Tanda Sertifikasi dihapus atau ditutupi dari barang-barang tersebut sebelum dijual;





(c) subject to clause 12.1 (b), must remove the Licensed Certification Mark from, or destroy all Materials bearing the Licensed Certification Mark in the Client's custody, possession or control; and	(c) tunduk pada ketentuan klausul 12.1 (b), harus menghapus Tanda Sertifikasi Berlisensi dari, atau memusnahkan semua Materi yang mengandung Tanda Sertifikasi Berlisensi dalam pengawasan, kepemilikan atau pengendalian Klien; dan
(d) must promptly return the Certificate and Licence to Intertek SAI Global.	(d) harus segera mengembalikan Sertifikat dan Lisensi kepada Intertek SAI Global.
12.2 Termination of the Licence will not affect any accrued rights of any party, including any rights of appeal available to the Client under any applicable Rules.	12.2 Pengakhiran Lisensi tidak akan mempengaruhi hak-hak apa pun yang diperoleh dari pihak mana pun, termasuk hak banding yang tersedia bagi Klien sesuai dengan Peraturan yang berlaku.
12.3 Clauses 6, 7 and this clause 12 survive the termination of the Licence.	12.3 Ketentuan klausul 6, 7 dan klausul 12 ini akan tetap berlaku terus menerus pada pengakhiran Lisensi tersebut.
13. GENERAL The provisions of the Certification Terms dealing with limitation of liability, assignment, severability, waiver, relationship, notice, headings, force majeure, anti-bribery and governing law and jurisdiction apply, mutatis mutandis, to the Licence.	13. UMUM Ketentuan Persyaratan Sertifikasi ini berkenaan dengan pembatasan kewajiban, penugasan, keterpisahan, pelepasan hak, hubungan, pemberitahuan, judul, keadaan kahar, anti-suap, dan ketentuan hukum perundang-undangan dan yurisdiksi yang berlaku, perubahan-perubahan penting yang perlu dilakukan, terhadap Lisensi tersebut.

